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U.S. Department of State Diplomacy in Action

Cameroon

Country Reports on Human Rights Practices
Bureau of Democracy, Human Rights, and Labor
2001
March 4, 2002

Cameroon is a republic dominated by a strong presidency. Since independence a single party, now called the Cameroon People's Democratic Movement (CPDM), has remained in power. In 1997 CPDM leader Paul Biya won reelection as President in an election boycotted by the three main opposition parties, marred by a wide range of procedural flaws, and generally considered by observers not to be free and fair. The 1997 legislative elections, which were dominated by the CPDM, were flawed by numerous irregularities and generally considered not free nor fair by international and local observers. The President retains the power to control legislation or to rule by decree. In the National Assembly, government bills take precedence over other bills, and no bills other than government bills have been enacted since 1991, although the Assembly sometimes has not enacted legislation proposed by the Government. The President has used his control of the legislature to change the Constitution. The 1996 Constitution lengthened the President's term of office to 7 years, while continuing to allow Biya to run for a fourth consecutive term in 1997 and making him eligible to run for one more 7-year term in 2004. In 2000 the Government began discussion on an action plan to create the decentralized institutions envisioned in the 1996 Constitution, such as a partially elected senate, elected regional councils, and a more independent judiciary; however, none of the plans had been executed by year's end. Early in the year, President Biya proposed and the National Assembly passed a bill to create a National Election Observatory. General elections have been postponed twice and were scheduled to occur no later than January 2002. The Government remained highly centralized and is dominated by the presidency. The judiciary is subject to political influence and suffers from corruption and inefficiency.

Internal security responsibilities are shared by the national police (DGSN), the National Intelligence Service (DGRE), the Gendarmerie, the Ministry of Territorial Administration, military intelligence, the army, and to a lesser extent, the Presidential Guard. The police and the Gendarmerie have dominant roles in enforcing internal security laws. The Douala Operational Command, a military anticrime unit established in February 2000, temporarily ceased operations during the year in response to increasing reports of human rights abuses committed by the Command. The security forces, including the military forces, remain under the effective control of the President, the civilian Minister of Defense, and the civilian head of police. The security forces continued to commit numerous serious human rights abuses.

The country's population of approximately 15 million had a recorded mean per capita gross national product (GNP) of approximately \$607 (455,250 CFA francs). The majority of the population is rural, and agriculture accounts for 25 percent of GNP. Principal exports include timber, coffee, cocoa, cotton, bananas, and rubber. Economic growth has continued over the past 5 years, despite decreases in world prices for the country's major primary product exports. Over the past 4 years, GNP growth has averaged 4 to 5 percent annually; however, economic recovery continued to be inhibited by a large inefficient

parastatal sector, excessive public sector employment, and the Government's inability to deregulate the economy to attract more investment. Widespread corruption in government and business also impedes growth. Members of the Beti and Bulu ethnic groups dominate the civil service and the management of state-owned businesses. The Government also continued to receive substantial assistance from international financial institutions.

The Government's human rights record remained generally poor, and it continued to commit numerous serious abuses. Citizens' ability to change their government remained limited. Security forces committed numerous extrajudicial killings and were responsible for disappearances, some of which may have been motivated politically. They also tortured, beat, and otherwise abused detainees and prisoners, generally with impunity. However, the Government prosecuted a few offenders, including some who were convicted and sentenced to prison terms and others who remain in prison awaiting trial. Conditions remained harsh and life threatening in almost all prisons, although the Government granted international humanitarian organizations access to prisoners. Security forces continued to arrest and detain arbitrarily various opposition politicians, local human rights monitors, and other citizens, often holding them for prolonged periods, often without charges or a chance for trial and, at times, incommunicado. The judiciary remained corrupt, inefficient, and subject to political influence. At times military tribunals exercised criminal jurisdiction over civilians, which denied some civilians fair trials. Security forces conducted illegal searches and harassed citizens. The Government infringed on citizens' privacy, and monitored and harassed some opposition activists. The Government continued to impose limits on freedom of speech and press freedom. Although private newspapers enjoyed considerable latitude to publish their views, journalists continued to be subject to official, and, on occasion, serious harassment. There were reports that the Government seized newspaper editions; the Government continued to obtain convictions against journalists under the antilibel laws. In 2000 the Government implemented a 1990 law designed to end its virtual monopoly of domestic broadcast media. Five radio stations subsequently applied for licenses to operate and continued to broadcast pending final authorization. During the year, two additional stations applied for licenses. After waiting for 6 months for a government response, one station assumed tacit approval and began to broadcast. The Government attempted to shut this station down. The Government restricted freedom of assembly and association. At times the Government used its security forces to inhibit political parties from holding public meetings; security forces also used excessive force to disperse demonstrations. The Government generally respected freedom of religion; however, there were some exceptions. Government security forces limited freedom of movement. Violence and discrimination against women remained serious problems, and female genital mutilation (FGM) was not practiced widely. The abuse of children occurred. Discrimination against indigenous Pygmies continued. Societal discrimination based on religion persisted in some areas; societal discrimination against ethnic minorities continued. The Government continued to infringe on worker rights and restricted the activities of independent labor organizations. Child labor remained a serious problem. Slavery reportedly persisted in northern parts of the country. Forced labor, including forced child labor, was a problem. There were reports of trafficking in persons, primarily children, for purposes of forced labor. Mob violence continued to result in some deaths.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no confirmed reports of politically motivated killings; however, the security forces continued to use excessive, lethal force against private citizens and committed numerous extrajudicial killings.

On January 24, the Douala Operational Command arrested nine youths, later known as the Bepanda 9, who were suspected of stealing a gas canister in the Bepanda District of Douala (see Section 1.b.). The young men have not been seen since immediately following their arrests, and all sources believe that they were executed by members of the Command.

In addition to the Bepanda 9, there were reports that the Douala Operational Command committed numerous summary executions. Conservative estimates place the number killed in the hundreds, but Cardinal Tumi, the Archbishop of Douala, believes the number may range as high as 1,000. There were reports that some persons were tortured before they were killed

(see Section 1.c.). By year's end, the Operational Command resumed operations after it temporarily was disbanded in the spring. There were reports that before the Command was forced to be inactive temporarily, Command leaders ordered the execution of the 81 detainees who remained in the special Command prison facility named "Kosovo." The Operational Command operates above the authority of other security forces in the city and also killed some suspects in shootouts and high-speed car chases. It also reportedly used a network of informants, including a large number of convicted criminals and prison officials, to obtain the names of suspected bandits who the Command then arrested and summarily executed. The Operational Command also used neighborhood sweeps to search for criminals, occasionally executing suspects for minor offenses such as smoking marijuana. Press and other reports allege that the Operational Command has several mass graves, including one in the "Forest of Monkeys" (Bois des Singes) and another off the "Old Road" between Douala and Edea, where bodies were abandoned in pits or buried.

In November 2000, the Government announced plans to investigate alleged killings by the Douala Operational Command. In 2000 the National Human Rights Commission, under the Prime Minister, sent teams to Douala to investigate. Although two reports were produced for the President and the Prime Minister, there were no plans to release the reports publicly.

Security authorities in the remote North and Far North Provinces also were accused of extrajudicial killings; however, there were fewer reported incidents during the year. Credible reports by the press and the Maroua-based Movement for the Defense of Human Rights and Liberties (MDHRL), a nongovernmental organization (NGO), describe a large but undetermined number of extrajudicial killings perpetrated by a special antigang gendarmerie unit, known as "Operation Octagon," tasked with combating highwaymen. This unit was created under the direct authority of the Minister of Defense and operates outside the normal chain of command for law-and-order units. While some armed suspects were killed in firefights with security forces, there were credible reports that others caught in dragnet operations were executed summarily. Families of the deceased and human rights NGO's have accused the head of this unit, Colonel Pom, of extrajudicial killings of civilians. The MDHRL estimates that up to 1,000 persons have been killed since the beginning of 1998. There is little information available to either support or refute this number, but even some local authorities have admitted that the number of victims in rural areas probably exceeds the number killed in Douala. The Government's National Commission on Human Rights and Freedoms (NCHRF) corroborated this information in 2000, although it was unable to determine the exact number of persons killed, since many of the victims' families were too frightened to speak with human rights groups.

At least one private newspaper, the Yaounde-based tri-weekly Mutations, also reported in 1998 that security forces summarily executed hundreds of alleged highway robbers in northern areas of the country during recent years. During the year, the security situation in the northern provinces appeared to have improved, but there were still occasional accusations of summary executions following acts of banditry. Local human rights groups noted that local authorities, even the special antigang units, paid more attention to due process than in previous years; they believe that the paramilitary forces have received strict instructions to restrain their activities in an attempt to avoid another scandal that would embarrass the Government. However, government authorities in the region believe that the antigang units largely have completed their mission and that the remaining bandits are living in fear, thus eliminating the necessity for excessive use of force. They point to the significant drop in crime in the region. At year's end, the Government was not investigating any of the accusations of extrajudicial killings in recent years.

An elite crime-fighting unit, the Light Intervention Battalion (BLI), was established in 1999, but only recently became operational. The BLI, which received extensive training from Israeli military consultants, reports directly to the Presidency. BLI members have been accused of conducting summary justice against suspected criminals. Preliminary reports indicated that this group has benefited from improved training and intelligence gathering methods; however, no further information was available at year's end.

On January 6, a 23-year-old man named Apah died in Njikwa, Momo Division, Northwest Province, as the result of torture; Apah had been arrested and detained at the gendarmerie brigade after Joseph Mbe complained that Apah had impregnated his daughter. Gendarmes tortured Apah for days to force him to accept responsibility for the pregnancy. On January 7, an

angry mob rushed to the brigade, and the gendarmes deserted the building; the mob subsequently attacked the facility. After the incident, one gendarme implicated in Apah's killing was transferred out of the division. A suit was filed against him, which remained pending in the Bafoussam Military Tribunal at year's end.

On February 27, the BLI based in Maroua reportedly arrested and executed Hamadou Kadri alias Hamadou Touche, a suspected bandit. No further details were available on the case by year's end.

On April 15, Angang, a gendarme at the students residential quarters of Bonamoussadi, in Yaounde, shot and killed Eloi Sanda Abba, a student of the National Youth and Sports Institute. . Sanda and a companion had been pushing Sanda's vehicle, which had become stuck in the mud. The noise had awakened the gendarme, Angang, who emerged from his house with a rifle. An argument ensued, and the gendarme shot Sanda. The gendarme subsequently was arrested; at year's end, he was in detention in the Yaounde gendarmerie quarters pending trial.

In June police shot and killed Aliou Oumarou, a suspect in the May 28 murder of a French expatriate in a Yaounde pharmacy. Local media reported that he was killed while resisting arrest; however, no further information was available at year's end.

Police forcibly dispersed several demonstrations during the year; on at least one occasion, police shot and killed demonstrators (see Section 2.b.). On October 1 in Kumbo, a gendarme shot into a crowd of approximately 400 unarmed demonstrators, killing 3 and injuring 16 persons, after a SCNC anniversary celebration became violent (see Section 2.b.). No action was taken against the responsible gendarme by year's end.

Numerous prisoners died in custody due to abuse inflicted by members of the security forces or harsh prison conditions and inadequate medical treatment (see Section 1.c.).

In 1999 the U.N. released a report by the Special Rapporteur on Torture, Nigel Rodley, regarding his visit to the country in May 1999. In this report, Rodley noted that torture and long-term detention are widespread. He also commented on deaths resulting from torture and extrajudicial killings, primarily in the Far North Province (see Sections 1.c. and 4), but he did not provide any specific examples of such deaths.

In October 2000, Operational Command Sergeant Jean Claude Mbita allegedly shot and killed Luc-Benoit Bassilekin, a technician, while attempting to arrest him; Bassilekin's brother was arrested. In November 2000, the Government announced that it had arrested Mbita on charges of intentional homicide. On April 23, the prosecutor of the Douala military tribunal began interrogating Mbita; the case was ongoing at year's end.

In mid-January 2000, Atangana, a gendarme serving at the Douala port, shot and killed Alhadji Bapetel, a customs officer also serving at the port. The shooting followed a quarrel over authority issues. The Government arrested the gendarme, who was charged with "assault occasioning death." On February 20, the prosecutor of the Douala military tribunal asked for the death penalty against Atangana; the case still was ongoing at year's end.

In May 2000, police officers from the Yaounde special operation grouping (GSO) detained, tortured, and killed Edouard Leuwat, a Yaounde taxicab driver. One GSO policeman, with assistance from other officers, had arrested Leuwat without warrant, believing Leuwat to be the driver of a taxicab in which the policeman had left his handgun on the previous day. Leuwat denied the charge, and the policeman tortured Leuwat to extract a confession. The Government arrested eight police officers involved in the case and charged them with "torture having resulted in death." In June 2000, the Government transferred the eight to the Yaounde-based Kondengui Central Prison, where they were awaiting trial at year's end.

There were no developments in the following 2000 cases: The October killing of Paul Petchucke, a taxicab driver, by Paul Essoh, a soldier who remained in detention pending trial at year's end; the May killing of Laurent Abbe by Bahiba, a police officer who remained in detention pending trial at year's end; and the April beating to death of Emmanuel Ebanda by three

police officers, who remained in detention pending trial at year's end. There were no reports of any action taken against the members of the security forces responsible for the following killings in 2000: The September death from torture of Mathew Titiahonjo; the June killing of two bandits by security officers; and the May killings of two women in Yaounde.

In 2000 the military court sentenced gendarme captain Engola to 10 years in prison for killing Yves Atiback in January 1999. On July 19, the military court of appeals reduced Engola's sentence from 10 years to 27 months, including time served, and reduced the damages from \$400,000 (300 million CFA francs) to \$20,000 (15 million CFA francs). The appeals court based its decision on the argument that Captain Engola reacted to provocation; Engola was released after the decision.

There were no developments in the following 1999 cases: The October beating death of Frederic Djomeli by police in the Haut-Nkam division; the September beating death of Theopole Mbasi Ombe by three members of the presidential guard; the March killing of Denis Nzidchen by prison guards; and the February killing of three Fulani shepherds by villagers acting on the orders of the Fon of Bali.

In April and May, two Catholic priests were killed (see Section 2.c.).

While ethnic conflicts caused deaths in previous years (see Sections 1.c. and 5), there were no reports of such deaths during the year.

Mob violence and summary justice directed against suspected thieves and those suspected of practicing witchcraft and other crimes reportedly continued to result in a number of deaths and serious injuries. On March 21, local media reported that a mob beat Joseph Nzelamnyuy for stealing three goats; Nzelamnyuy later died at a local hospital. In late April, an angry mob beat to death Abdulai Fonyuy for stealing some beans in Melim, a small locality of Bui Division, Northwest Province. Fonyuy's companion, Cyprien Sien, was injured severely. An investigation into the case was ongoing at year's end.

b. Disappearance

There were reports of disappearances of persons in the custody of security forces. Some disappearances may be attributed to summary executions by security forces in Douala or the northern regions (see Section 1.a.); in these instances, bodies rarely are found, although the suspects are presumed dead.

On January 24, the Douala Operational Command arrested Marc Etah, Frederic Nguffo, Chatry Kuete, Jean Roger Tchiwan, Eric Chia, Charles Kouatou, Effician Chia, Elysee Kouatou, and Fabrice Kouate, who were suspected of stealing a gas canister in the Bepanda District of Douala. The families of the detainees initially were accorded visiting rights; however, the detainees have not been seen since January 26 and 27. All observers believe that the Command summarily executed the nine youths. The authorities admitted that the nine were arrested, but refused to either admit to their deaths or to produce them alive. The cause of the Bepanda 9, as they came to be known, was taken up quickly by Christians for the Abolition of Torture (ACAT), a Douala based NGO, which helped to bring both domestic and international attention to the case. The victims' families formed another group, the Committee for the Defense of the Nine (C9), and in late February, began to organize weekly protests to demand the whereabouts of the young men. Police dispersed forcibly and sometimes violently the weekly demonstrations (see Section 2.b.).

On March 20, President Biya ordered an investigation into the disappearance of the Bepanda 9. On April 6, he transferred General Mpay, the Commander of the Douala Military District and de facto leader of the Operational Command, to the Bamenda military district; he also replaced Operational Command Gendarmerie Legion Commander Bobo Ousmanou. In late April, demonstrations continued (see Section 2.b.), and Colonel Ousmanou and seven other officers of the Operational Command were arrested. Amadou Ali was replaced as Minister of Defense; however, on April 27, he was reappointed Minister of Justice. On May 22, the Governor of the Littoral Province was fired. There also were reports that a prominent Member of Parliament (M.P.) promised vacations, government positions, and cash to various members of the C9 to persuade them to stop their weekly protests, which ended with the arrest of Ousmanou. In November the military trial of the eight officers was

referred to a high court in Yaounde after the case was dismissed from the court of first instance on a technicality. The trial was conducted in secret, and the Government has refused to release the results of its inquiry or to consider a civilian court trial for the officers. Although government officials insist the case will be heard, no trial date was set by year's end.

There were no known developments, nor are any likely to be, in the May 2000 case of Mamfe residents Joseph Enow, Joseph Tafong, Chief Assam, and Mathias Takunchung, who disappeared after security officials searched their homes. The families of the four Mamfe residents have alleged that they were executed, and that 30 other persons disappeared under similar circumstances in 2000.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there were numerous credible reports that security forces, including the Operational Command, continued to torture, beat, and otherwise abuse prisoners and detainees. There were reports that security forces, including the Operational Command, detained persons at specific sites where they tortured and beat detainees (see Section 1.d.). The Operational Command reportedly tortured some persons before summarily executing them (see Section 1.a.). The U.N. Special Rapporteur on Torture, Nigel Rodley, in his report on the country released in 1999, stated that torture was widespread and used indiscriminately against persons under arrest or detained. Security forces also reportedly subjected women, children, and elderly persons to abuse. Most cases apparently were not reported to the relevant authorities because of ignorance, lack of confidence, or fear of reprisals on the part of the victims and their families. In New Bell and other nonmaximum-security penal detention centers, beatings are common and prisoners reportedly are chained or flogged at times in their cells. However, the authorities often administer beatings not in prison facilities, but in temporary detention areas in a police or gendarmerie facility. Two forms of physical abuse commonly reported to be inflicted on detainees include the "bastinade," in which the victim is beaten on the soles of the feet, and the "balancoire," in which the victim, with his hands tied behind his back, is hung from a rod and beaten, often on the genitals. Nonviolent political activists often have been subjected to such punitive physical abuse during brief detentions following roundups of participants in antigovernment demonstrations or opposition party political rallies.

Security forces subjected prisoners and detainees to degrading treatment that includes stripping, confinement in severely overcrowded cells, and denial of access to toilets or other sanitation facilities. Police and gendarmes often beat detainees to extract confessions and the names and whereabouts of alleged criminals. In his report, U.N. Special Rapporteur Rodley noted that the Government increasingly was moving toward punishing offenders, but that "some of those incriminated act out of ignorance and others out of pure habit, for they have regularly acted that way for a long time without fear of any consequences." Pretrial detainees sometimes were required, under threat of abuse, to pay so-called "cell fees," essentially a bribe to the prison guards to prevent further abuse.

On April 6, Pierre Minlo Medjo, the General Delegate for National Security of the DGSN, issued a circular letter to all DGSN personnel nationwide to remind them of the provisions governing the conditions of detention of suspects. In his letter, he called on security forces to comply fully with the provisions of the law and those of the international covenants that the country has signed. He instructed the personnel that any act that attempted to take away the dignity of those detained should be proscribed, whatever the reasons for their detention. There was no evidence by year's end that this letter influenced changes in security force behavior.

On the night of January 19 and 20, a group of 10 female soldiers in military uniform and 2 men in civilian clothes kidnaped Hortense Toukam, a Douala-based hairdresser. Toukam was taken to the headquarters of the 21st Armored Reconnaissance Battalion, stripped naked, and severely beaten and tortured for 2 hours. According to press reports, Toukam was suspected of spreading lies about one of the soldiers to friends of the soldier. Toukam filed a complaint; no action had been taken by year's end.

On March 3, gendarmes of the Groupement Polyvalent d'Intervention de la Gendarmerie National (GPIC) special unit attacked Pierre Nyemeck Ntamack, a national transportation trade union delegate in charge of legal affairs and disputes. The incident occurred at "Tropicana," a Yaounde neighborhood where truck drivers in transit park their vehicles. Nyemeck, who had

observed several gendarmes trying to extort diesel fuel from one of the drivers, intervened on behalf of the truck driver. One of the gendarmes seized Nyemeck's tie and tried to strangle him while the other gendarmes beat him. It was unknown if Nyamack lodged a complaint or whether any action was taken against the gendarmes by year's end.

On May 17, police arrested on undisclosed charges and tortured Jacques Zoua, a member of a Maroua-based human rights NGO. Zoua reportedly was subjected to the "bastinade" and released the following day. It was unknown whether any action was taken against the police.

On June 2 and June 9, security forces under the authority of Colonel Essame, organized neighborhood sweeps in the Kodogo and Garoua quarters of Kousseri in the Far North Province. The operations followed the killing of a soldier during a dispute with a civilian resident of the sector. According to the local branch of SOS Human Rights and Democracy, a human rights defense group, the family of the suspect and other inhabitants of the neighborhood were arrested and brutalized, including Alhadji Moustapha, Ahmed Djibrine, and Mahamet Ahmed. Many of those arrested were subjected to torture and later were admitted to hospitals for treatment. It was unknown whether any action was taken against the police.

Security forces continued to harass and detain activist Mboua Massock (see Section 2.d.). Security forces harassed and threatened journalists (see Section 1.a.).

Security forces frequently used roadblocks to exact bribes or thwart opposition political activities (see Section 2.d.).

In the vast majority of cases of torture or abuse, the Government rarely investigated or punished any of the security officials involved.

In July 2000, Police Commissioner Theophile Tocko arrested Magloire Evouta, a businessman, at a Yaounde hotel. Evouta, who suffered from a chronic illness, was denied medical treatment and died at the Yaounde judicial police station in August 2000. On August 28, the President subsequently dismissed Tocko from his position; Tocko was arrested and in detention pending trial at year's end.

Eight Yaounde special operation grouping (GSO) officers remained in detention pending trial at year's end for torturing to death Edouard Leuwat in May 2000 (see Section 1.a.).

In May 2000, Dieudonne Dibong, a police officer, shot at a Yaounde cab after the cab ignored his traffic directions, seriously injuring the driver and the occupants of the vehicle. The General Delegate for National Security (DGSN) ordered disciplinary sanctions, and the Government arrested Dibong, whose trial was pending at year's end.

There reportedly was no action taken against the responsible members of the security forces who tortured, beat, raped, or otherwise abused the persons in the following cases from 2000: The November beating of a journalist; the September rape of two girls; the June beating of Amelie, a female soccer player; the June injuring of several persons when a grenade thrown by a gendarme exploded in a bar; the June beating of Beatrice Elouga, the June assault of numerous citizens; the May torturing of Achille Tehoumba Heubo; the May beating of Madeleine Ngo Songane; the May torturing to death of Mathew Titiahonjo; the May beating of several student demonstrators; the April beating and torturing of a foreign volunteer teacher; the April injuring of Cecile Ngono; the April beating of Nicole Ajong; the April beating of parishioners at Notre Dame De Sept Douleurs; the March torturing of Jean Paul Kentsa and two others; the January injuring and beating of several students when a demonstration was dispersed forcibly; and the January torturing of customs inspector Vincent Nkengfue.

There were no developments, nor are any likely in the September 1999 beating of Madi Baddai by Seke Columban, the police commissioner in Guider, North Province.

On June 15, the Government reportedly paid \$137,000 (96 million CFA francs) compensation to Albert Mukong, an SDF activist and writer who was arrested and tortured while in prison in 1994 (see Section 2.a.).

Mob violence directed against suspected thieves reportedly continued to result in a number of deaths, some because of beatings or torture (see Section 1.a.).

Prison conditions remained harsh and life threatening. Prisons are seriously overcrowded, unsanitary, and inadequate, especially outside major urban areas. Serious deficiencies in food, health care, and sanitation due to a lack of funds are common in almost all prisons, including in "private prisons" in the north operated by traditional rulers. U.N. Special Rapporteur Rodley described prison conditions in the country as "universally appalling." Rodley also reported that "overcrowding, unhygienic sanitation, lack of health care, and shortage of food, reportedly are the main failings in the Cameroonian prison system. These conditions cannot be blamed only on lack of financial or material resources, but also result from deliberate policies or serious neglect on the part of the relevant officials." Rodley wrote that these conditions are "endangering the health and even the lives of the detainees." Prisoners are kept in dilapidated colonial-era prisons, where the number of detainees is four to five times the original capacity. Authorities confirmed to Rodley that 1 cell measuring 6 square meters housed 16 persons; 1 prisoner stated that the cell sometimes held up to 23 persons. Health and medical care almost are nonexistent, and prisoners' families are expected to provide food for their relatives in prison. Prison officials torture, beat, and otherwise abuse prisoners (see Section 1.c.). Rodley reported that the vast majority of those in detention had been tortured or abused. Rodley specified cases of machete beatings, toenails being ripped out, and police shootings of victims who had received no medical attention. Prisoners routinely die due to harsh prison conditions and inadequate medical treatment. In Douala's New Bell Prison, there were only 7 water taps for a reported 3,500 prisoners; this contributed to poor hygiene, illness, and deaths. In New Bell and other nonmaximum-security penal detention centers, families are permitted to provide food and medicine to inmates; however, beatings are common. Prisoners reportedly are chained or flogged at times in their cells and often are denied adequate medical care. In April 2000, the Minister of Territorial Administration and the Secretary of State for Territorial Administration in charge of penitentiary administration visited Douala and Yaounde prisons. The Yaounde prison was so dirty that the Minister ordered the immediate release of funds for repainting. In Douala the Minister said that the prison would be improved with funding from a foreign government; however, the project had not been implemented fully by year's end.

Credible press reports indicate that Douala's New Bell prison, originally built for 600 inmates, held more than 3,500 during the year, of which 2,000 were pretrial detainees. The prison in the Far North Province capital of Maroua also was overcrowded; more than 900 prisoners occupy a prison with a capacity of 300, and more than 700 are pretrial detainees, awaiting trial at the Provincial Court of Appeals, located in Maroua. A 1997 report on prison conditions indicated that Bertoua Prison, which was built to hold 50 inmates, housed more than 700 persons. The Kondengui Central Prison in Yaounde, constructed in 1967 to hold 1,500 inmates and equipped with only 16 toilets or showers and 400 beds, held approximately 3,600 inmates, including 700 women during the year. Some cells built for fifteen persons hold more than fifty. Prisoners reportedly have one meal per day and receive 4.4 ounces of soap every 6 months. In 1999 the government official in charge of prisons said that the Central Prison of Bafoussam, built for 320 inmates, held 3,140 persons. Press reports indicate that the Bamenda Central Prison, built for 300 inmates, holds 900 persons, approximately 750 of whom are pretrial detainees. Overcrowding is exacerbated by the large number of long pretrial detentions and the practice of "Friday arrests" (see Section 1.d.). According to credible press reports, more than 1,400 of the inmates of the Douala prison were pretrial detainees, whereas only 900 were convicted prisoners.

Prisoners sometimes can buy special treatment up to and including their freedom; credible reports from Bafoussam Central prison indicate that freedom between 6 a.m. and 6 p.m. was available daily to any prisoner who could afford the superintendent's weekly fee of \$20 (15,000 CFA francs). Prisoners in Bafoussam reportedly used their free time to steal the next week's fees.

Juveniles and nonviolent prisoners often are incarcerated with adults, although not usually in the same cells. There are credible reports of sexual abuse of juvenile prisoners by adult inmates. Corruption among prison personnel is widespread. Persons awaiting trial routinely are held in cells with hardened criminals. There are few detention centers for women; women routinely are held in prison complexes with men, occasionally in the same cells. Mothers often are incarcerated with their children or babies. The U.N. Special Rapporteur on Torture reported that he saw at least one 14-year-old child being kept

with adult offenders, one woman being held in the same cell as male prisoners, and one woman incarcerated with her 9-month-old child. Some high-profile prisoners are able to avoid some of the abuse that security forces routinely inflict on many common criminals. They are kept in elite wings of certain prisons, where they enjoy relatively lenient treatment.

The NCHRF admitted in a February media interview that "some people are just forgotten in prison." In a March 12 press release, the Cameroon Organization for Citizens' Rights and Freedoms disclosed the results of an investigation that it conducted in the Yaounde Central Prison. According to those results, several persons who had completed their prison term or had been released by a court ruling still were in detention, including prisoners whose files have been lost and are not given a court date for this reason. One detainee had been in jail for 6 years without trial. The organization worked with the prosecutor's office to secure the release of approximately 100 of the most egregious cases. On January 29, the prisoners of the Yaounde Kondengui prison addressed a letter to the Minister of Justice and various newspapers in which they complained about their conditions. The letter indicated that of the 3,600 persons held in the prison, approximately 3,000 still were awaiting trial. The prisoners threatened to go on hunger strikes or riot.

With the assistance of the French Cooperation Agency and European Union during the year, the Government was organizing two programs for the renovation and humanization of prisons. Feasibility studies also were in progress for the construction of new prisons in Yaounde, Douala, and other cities.

Numerous NGO's, diplomatic missions, and the NCHRF all have criticized publicly the conditions of the group of Anglophone detainees arrested in 1997. One reliable report described 28 detainees sharing a cell measuring 14 square meters (approximately 140 square feet). At least eight of the original detainees reportedly have died from abuse or lack of medical care: Emmanuel Konseh, Samuel Tita, Mathias Gwei, Neba Ambe, Mado Nde, Richard Fomusoh Ngwa, Patrick Jimbou, and Lawrence Fai.

In the north, the Government permits traditional Lamibe (chiefs) to detain persons outside the government penitentiary system, in effect in "private prisons." The places of detention in the palaces of the traditional chiefs of Rey Bouba, Gashiga, Bibemi, and Tcheboa have the reputation of seriously mistreating their inmates. Members of the National Union for Democracy and Progress (UNDP) party, which was an opposition party until late 1997, have alleged that other UNDP members have been detained in these private jails and that some have died from mistreatment.

Both the Cameroonian Red Cross and the NCHRF visited prisons only infrequently during the year. However, the International Committee of the Red Cross (ICRC) began to visit prisons in 1999, pursuant to a 1998 agreement with the Government under which the ICRC was to have free access to all detention centers and prisons, have private discussions with the inmates, and make repeated or unscheduled visits (see Section 4). Although the ICRC does not release its findings publicly, the Government generally complied with its agreement with the ICRC. However, despite government assurances to the contrary, officials denied U.N. Special Rapporteur for Human Rights Rodley access in 1999 to holding cells operated by the Government's special antigang unit (see Sections 1.a. and 1.b.).

d. Arbitrary Arrest, Detention, or Exile

The law prohibits arbitrary arrest and detention and requires an arrest warrant, except when the criminal is caught in the act; however, security forces continued to arrest and detain citizens arbitrarily. The law also stipulates that detainees must be brought promptly before a magistrate; however, arbitrary, prolonged detention remained a serious problem, since security forces often failed to bring detainees promptly before a magistrate and sometimes held them incommunicado for months or even years. For example, Onana Ndengue spent 14 years in prison before he was acquitted during the year; Souley Bobo, who was arrested in 1992 on murder charges, never has been heard by the prosecutor; and Michel Sighanou, a juvenile who was transferred from the Yabassi prison in 1996, has been awaiting trial for more than 5 years. Some persons are detained for several months simply because they are unable to present identification to authorities when asked.

Police legally may detain a person in custody in connection with a common crime for up to 24 hours, renewable three times, before bringing charges. The law provides for the right to a judicial review of the legality of detention only in the two Anglophone provinces. Elsewhere, the French legal tradition applies, precluding judicial authorities from acting on a case until the administrative authority that ordered the detention turns the case over to the prosecutor. After a magistrate has issued a warrant to bring the case to trial, he may hold the detainee in administrative or "pretrial detention" indefinitely, pending court action. Such detention often is prolonged, due to the understaffed and mismanaged court system. According to U.N. Special Rapporteur Rodley, 80 percent of the prison population consists of untried prisoners (see Section 1.c.). Rodley wrote that the length of pretrial detention, often stretching as long as 7 years, makes it "inhuman in itself." In addition Rodley claimed that "pretrial detention is used not to attain its primary goal of upholding order and security and facilitating investigation, but rather, in the perception both of the public and of the forces of law and order, as a sanction." Furthermore, the law permits detention without charge by administrative authorities for renewable periods of 15 days, ostensibly in order to combat banditry and maintain public order. Persons taken into detention frequently are denied access to both legal counsel and family members. The law permits release on bail only in the Anglophone provinces, where the legal system includes features of British common law; however, bail is granted infrequently in those provinces.

There were reports that security forces, including the Operational Command, detained persons at specific sites where they tortured and beat detainees (see Sections 1.a. and 1.c.). Government officials and security forces continued to use arbitrary arrest to harass and intimidate members of opposition parties and other critics of the Government.

On January 13, at the Warda junction in Yaounde, security forces dispersed an opposition demonstration, and arrested and detained briefly several opposition deputies and approximately 20 demonstrators (see Section 2.b.).

On April 1, the Douala police detained for 8 hours Anicet Ekane, Chairman of the MANIDEM opposition party, at the party's headquarters for 8 hours. Ekane and party members were holding a meeting to prepare for a demonstration in support of the Bepanda 9 (see Section 2.b.).

On April 15, the Douala police arrested Vicotrin Hameni Bieleu, Chairman of the Union of Cameroon Democratic Forces Party (UFDC), Anicet Ekane, the leader of the MANIDEM Party, and 15 SDF party members during a 500-person demonstration in support of the Bepanda 9 (see Sections 1.b. and 2.b.). The detainees were accused of participating in an illegal march; on April 17, they were released for lack of evidence. Police detained SDF leader John Fru Ndi on several occasions to prevent him from reaching the city to join in the marches.

On April 26, the Douala police arrested and detained for several days on unspecified charges five persons who were attending a meeting in a private residence in support of the Bepanda 9 (see Sections 1.b. and 2.b.).

On May 17, police arrested and tortured Jacques Zoua, a member of a Maroua-based human rights NGO, on undisclosed charges; he was reportedly subjected to the "bastinade" torture and released the following day (see Section 1.c.).

In June during neighborhood sweeps in the Kodogo and Garoua quarters of Kousseri, police arrested and abused the family members and neighbors of a suspect in the killing of a soldier (see Section 1.c.).

On June 5, Douala airport police arrested Dominique Djeukam Tchameni, an opposition political leader and activist, on his return from Belgium, where he had filed a suit against President Paul Biya and some government and security officials for human rights violations in the Bepanda 9 case (see Section 1.b.). Police interrogated Djeukam Tchameni for 2 hours, released him, and confiscated his passport. On December 28, police in Douala airport again arrested and confiscated the passport of Djeukam Tchameni when he returned from another trip to Belgium to file a lawsuit against President Biya. Gendarmes met Tchameni's flight, detained him for 4 hours, and confiscated his passport and CNI documents.

On July 1, police arrested and detained overnight at the Douala Central police precinct approximately 60 persons who were leaving the Douala Cathedral after the evening Mass. The Police Commissioner claimed the sweep was undertaken to deter bandits from operating in the area.

After the Southern Cameroons National Council (SCNC) announced in September that it planned to hold October demonstrations in Kumba and Bamenda, the Government reportedly began arresting SCNC activists. On September 19, authorities in Bamenda arrested Francis Tatah, an artist, for printing T-shirts inscribed "Federal Republic of Southern Cameroons" and the logo of the SCNC. Tatah was released after he reportedly was questioned about SCNC leaders and affairs. The T-shirts were printed in preparation for SCNC demonstrations scheduled several weeks later. On September 28 in Kumba, police detained for 2 days Yvonne Sona and questioned her about the activities of her husband who is the southwest chairman of the SCNC.

On October 1 in Kumbu, gendarmes forcibly dispersed a demonstration organized by the SCNC and arrested approximately 50 demonstrators (see Section 2.b.). On October 1 in Bamenda, security forces violently dispersed another SCNC demonstration and arrested and detained 19 demonstrators (see Section 2.b.). These detainees were held without charges for 47 days and remained in detention despite being granted bail on October 24. Charges were first filed against the detainees on October 26. On October 29, the court ordered them to be released; however, they remained in detention. They were detained on charges that carry a maximum sentence of 10 days in jail or a \$34 (25,000 CFA francs) fine. In November three men from Jakiri were arrested after they returned from the burials of two men who were killed in the October 1 demonstrations (see Section 1.a.); they remained in detention in Bafoussam at year's end.

Security forces harassed and occasionally detained journalists and members of human rights NGO's (see Sections 2.a. and 2.b.).

Security forces continued to harass and detain activist Mboua Massock (see Section 2.d.).

On March 14, the Yaounde Military Court released six SCNC activists who had been arrested during a January 2000 demonstration: Justice Frederick Ebong, Chief Ayamba, James Sam Sabum, Emmanuel Njouji, Vincent Mba, and Pascal Daga.

In January 2000, four gendarmes reportedly arrested and tortured customs inspector Vincent Nkengfua, who they suspected of kidnaping a child, and all the workers at Nkengfua's plantation in Mbanga, including a child (see Section 1.c.). In September 2000, Nkengfua filed a lawsuit against the gendarmes with the Mbanga High Court for abuse of power, arbitrary arrest and seizure of property, false evidence, calumny, and torture. There was no further information available at year's end.

There were no developments in the following arrests in 2000: the June arrest of Beatrice Elouga; the April arrests of several parishioners at Notre Dame de Sept Douleurs (see Section 1.c.); and the March arrests of Catherine Yami and Roger Tankeu, respectively the SDF president for the Bassamba electoral district, and the SDF West provincial coordinator. The several opposition SDF parliamentarians who were arrested and detained after participating in a demonstration in November 2000 were released shortly after their arrests.

Many of the public officials arrested in 1999 in the Government's high-profile but short-lived corruption crack-down still were awaiting trial at year's end. In September and October 1999, the Government arrested these officials, including former Minister of Posts and Telecommunications Monchipou Seidou, Ministry Budget Director Guillaume Yetna Hiobi, and Ministry Director of Production Philip Tarkang, on charges of corruption or embezzlement. These former officials still were in detention without trial by year's end.

On January 19, the Yaounde High Court ruled for the release of Jerome Djiboula, Michel Tingam, and Emmanuel Arimade, who had been arrested 7 years earlier for theft. The trial revealed that the gendarmes had arrested the wrong persons, following a misidentification of the perpetrators.

On June 15, the Government reportedly paid \$137,000 (96 million CFA francs) compensation to Albert Mukong, an SDF activist and writer who was arrested and tortured while in prison in 1994 (see Section 2.a.).

Police and gendarmes often arrest persons on spurious charges on Fridays at mid-day or in the afternoon (see Section 1.c.). While the law provides for a judicial review of an arrest within 24 hours, the courts do not convene sessions on the weekend, so the detainee remains in detention at least until Monday. Police and gendarmes commonly accept bribes to make such "Friday arrests" from persons who have private grievances against the person arrested. There are no known cases of any policemen or gendarmes being sanctioned or punished for this practice.

Government intimidation extends beyond the police stations and holding cells. In efforts to combat highwaymen ("coupeurs de route"), Colonel Pom and his special antigang gendarmerie unit use informants to identify and accuse persons of taking part in highway robbery(see Section 1.a.). Standards of proof for such accusations are nonexistent. Accusations occasionally have been used to pursue private grievances, and informants repeatedly have extorted money from innocent persons by threatening to accuse them of being bandits. The Douala Operational Command reportedly used informants in a similar fashion. These informants often were former criminals or prison guards, and were used to target criminals who then were summarily executed (see Section 1.a.).

Four Anglophones, Abel Achah Apong, Crispus Kennebie, John Kudi, and Zaque Njenta, have been detained in the Yaounde Central Prison since 1995, and a fifth, Etchu Wilson Arrey, since 1997. Each was incarcerated after signing or displaying a petition for a referendum on independence for the Anglophone provinces. At year's end, none of these detainees had been brought before a judge or charged with a crime.

The Government does not use forced exile; however, some human rights monitors or political opponents who considered themselves threatened by the Government have left the country voluntarily and declared themselves to be in political exile.

On April 11, the traditional rulers of Ekondo-Titi, Southwest Province, acting under the authority of the Balondo Development Association (BACUDA), ordered the expulsion of Iyassa Anou, Joseph Regeant, Johnson Mambo Naseri, Mathew Ajong Awor, Christian Buma, Francisca Nyando, and James Okenye, for allegedly bewitching to death a resident of the town of Lobe; however, the order to expel the seven was not implemented by year's end. BACUDA was investigating the charges of alleged witchcraft at year's end.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, the judiciary remained highly subject to political influence and corruption. The court system remained technically part of the executive branch, subordinate to the Ministry of Justice. The Constitution specifies that the President is the guarantor of the legal system's independence. He also appoints judges with the advice of the Supreme Council of the Magistrature. However, the judiciary showed some modest signs of growing independence. Since 1997 the courts repeatedly have used powers given them under the 1996 press law to order the Ministry of Territorial Administration to desist from seizing print runs of newspapers critical of the Government (see Section 2.a.). Some politically sensitive cases never are heard by the courts.

The court system includes the Supreme Court, a Court of Appeals in each of the 10 provinces, and courts of first instance in each of the country's 58 divisions.

Military tribunals may exercise jurisdiction over civilians not only when the President declares martial law, but also in cases involving civil unrest or organized armed violence. Military tribunals also have jurisdiction over gang crimes, grand banditry, and highway robbery. The Government apparently interprets these guidelines quite broadly and sometimes uses military courts to try matters concerning dissident groups and political opponents.

The legal system includes both national law and customary law, and many cases can be tried using either. Customary law is based upon the traditions of the ethnic group predominant in the region and is adjudicated by traditional authorities of that group. Accordingly, particular points of customary law differ depending upon the region and the ethnic group where a case is being tried. In some areas, traditional courts reportedly have tried persons accused of some offenses, such as practicing witchcraft, by subjecting them to an ordeal, such as drinking poison (see Section 2.c.); however, there were no known

incidents during the year. Customary courts may exercise jurisdiction only with the consent of both parties to a case; either party has the right to have any case heard by a national rather than a customary court, and customary law is supposed to be valid only when it is not "repugnant to natural justice, equity, and good conscience." However, many citizens in rural areas remain unaware of their rights under civil law and have been taught since birth that customary laws form the rules by which they must abide. Consequently, traditional courts remain important in rural areas and serve as an alternative for settling disputes. Their authority varies by region and ethnic group, but they often are the arbiters of property and domestic disputes and may serve a probate function as well. Most traditional courts permit appeal of their decisions to traditional authorities of higher rank.

Corruption and inefficiency in the courts remained serious problems. Justice frequently was delayed or denied before reaching the trial stage (see Section 1.d.). Political bias often brought trials to a halt or resulted in an extremely long process, punctuated by extended court recesses. Powerful political or business interests appeared to enjoy virtual immunity from prosecution; some politically sensitive cases were settled with a payoff and thus never were heard. Private journalists, political opponents, and critics of the Government often were charged or held and sometimes jailed under libel statutes considered by observers as unduly restrictive of press freedom (see Section 2.a.). Prisoners may be detained indefinitely during pretrial proceedings.

The legal structure is influenced strongly by the French legal system, although in the Anglophone provinces certain aspects of the Anglo-Saxon tradition apply. The Constitution provides for a fair public hearing in which the defendant is presumed innocent. Because appointed attorneys received little compensation, the quality of legal representation for indigent persons often was poor. The Bar Association and some voluntary organizations, such as the Cameroonian Association of Female Jurists, offer free assistance in some cases. Trials normally were public, except in cases with political overtones judged disruptive of social peace.

The Government holds a number of political prisoners; however, as in previous years, there were no reliable estimates of the number of political prisoners held at the end of the year.

In April 1999, the Government began the trial of the 65 surviving Anglophones who had been detained, some for more than 2 years, on suspicion of participating in armed attacks against government installations in the Northwest Province in 1997. This judicial process did not follow either international or national legal norms. In October 1999, the military tribunal convicted 37 of the accused, sentencing 3 to life imprisonment and 34 to terms ranging from 1 to 20 years in prison. The tribunal acquitted 28 defendants, some of whom had been detained for 30 months, during which at least 8 of the persons originally arrested in this case died in custody, some of them as a result of torture inflicted on many of these detainees (see Section 1.c.). At the beginning of the year, 19 of the convicted Anglophones remained in prison in Yaounde; the other 18 were released following the completion of their sentences. In 2000 the Government released four Anglophones, Abel Achah Apong, Crispus Kennebie, John Kudi, and Zaque Njenta, who had been in the Yaounde Central Prison since 1995, and a fifth, Etchu Wilson Arrey, since 1997. Each was incarcerated after signing or displaying a petition for a referendum on independence for the Anglophone provinces. The tribunal declared itself incompetent to rule on two accused illegal Ghanaian immigrants, who reportedly remained incarcerated. International human rights NGO's, including Amnesty International, criticized the trial as unfair and protested the sentences.

Titus Edzoa, former Minister of Health and long-time presidential aide, who had declared himself a candidate to oppose incumbent President Biya in the 1997 election, remains incarcerated, together with Michel Atangana, his campaign manager. They were sentenced in 1997 to 15 years' imprisonment on embezzlement and corruption charges, for which Edzoa was arrested shortly after declaring his presidential candidacy (see Section 3). In 1999 the Yaounde Court of Appeals confirmed their convictions and their 15-year prison terms. On May 25, Edzoa reportedly sent a delegation to ask for the President's pardon. The President reportedly demanded a written request before consideration of the case, but Edzoa feared the letter would be used to strengthen the Government's case against him. At year's end, Edzoa reportedly still was held in confinement at the maximum security gendarmerie headquarters, in cramped quarters with very limited access to visitors.

The Constitution prohibits such actions; however, these rights are subject to the "higher interests of the State," and there were a number of credible reports that police and gendarmes harassed citizens, conducted searches without warrants, and opened or seized mail. The Government continued to keep some opposition activists and dissidents under surveillance. Police sometimes punished family members and neighbors of criminal suspects.

The law permits a police officer to enter a private home during daylight hours without a warrant if he is pursuing an inquiry and has reason to suspect that a crime has been committed. The officer must have a warrant to make such a search after dark; however, a police officer may enter a private home at any time in pursuit of a criminal observed committing a crime.

An administrative authority may authorize police to conduct neighborhood sweeps in search of suspected criminals or stolen or illegal goods without individual warrants. Such sweeps were conducted frequently. During the year, as in the previous year, sweeps involving forced entry into homes occurred in Yaounde and Douala (see Section 1.c.). An increase in crime during the year led to a dramatic increase in the number of such sweeps, called "kali-kali" or "raffles," in Douala and Yaounde. Typically, security forces seal off a neighborhood, systematically search homes, arrest persons arbitrarily, and seize suspicious or illegal articles. There were credible reports that security forces used these sweeps as a pretext to loot homes and arbitrarily arrest persons for minor offenses, such as not possessing identity cards (see Sections 1.d. and 2.d.). In a June 2000 letter to government officials, the Catholic Archbishop of Douala stated that security forces arrested some parents during these operations, forcing them to leave babies or sick children alone at home.

In the past, Government administrative officials have used the armed forces to conduct tax raids on civilian communities; however, the Government reportedly did not conduct any such raids this year. In the past, the Government publicly has blamed opposition parties for its inability to collect internal revenues, but it did not repeat such accusations this year.

In January government authorities began to destroy dilapidated houses along several of Yaounde's main roads in anticipation of the France-Africa Summit, which occurred in mid-January. Authorities claimed that the houses had been built illegally in an unauthorized zone. The action involved hundreds of houses and left many families homeless; no compensation was provided for destroyed houses. As part of this campaign, the Government also reportedly relocated mentally ill squatters in Yaounde to the neighboring town of Mbalmayo for the duration of the summit.

In January Augustine Cho Tafor, the Sub-Prefect of Alou, Lebialem Division, Northwest Province, oversaw the destruction of the home of Paul Tonya, a retiree. According to the Sub-Prefect, the house was demolished because its construction violated a 1999 injunction order and was built on a disputed piece of land.

There have been accusations, particularly in the North and Far-North Provinces, of traditional chiefs arbitrarily evicting persons from their land. One example occurred in May, when a traditional chief in the Maroua area, Dairou Yaya, sold to a local politician a parcel of land belonging to the family of Feu Bouba Toumba, who reportedly had lived there for 30 years. The chief reportedly threatened to have the family tortured by gendarmes if they did not leave the land immediately. No further information was available at year's end.

In June during neighborhood sweeps in the Kodogo and Garoua quarters of Kousseri, police arrested and abused the family members and neighbors of a suspect in the killing of a soldier (see Section 1.c.).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government continued to impose limits on these rights. The Penal Code's libel laws specify that defamation, abuse, contempt, and dissemination of false news are offenses punishable by prison terms and heavy fines. These statutes sometimes are invoked by the Government to silence criticism of the Government and government officials.

In August in the Far North Province, Abakar Tor, an activist with the NGO SOS Human Rights and Democracy in Maroua, was brought before a tribunal and charged with defamation against the local Sub-Prefect. Tor had complained to the Sub-Prefect that most of a government emergency shipment of grain sent to the north in April had been stolen by local and traditional authorities. Tor was tried and released by year's end.

Security forces continued to harass and detain activist Mboua Massock (see Section 2.d.).

Prior to the October 1 SCNC demonstrations, police and gendarmes seized demonstration materials, including placards, T-shirts, posters, and membership cards, from citizens (see Section 2.b.).

The Government publishes an official newspaper, The Cameroon Tribune. This paper occasionally implies criticism of the Government; however, its reporters do not report extensively on activities or political parties critical of the Government, criticize overtly the ruling party, or portray government programs in an unfavorable light.

While approximately 60 private newspapers were published, only an estimated 20 were published on a regular basis. Most continued to be highly critical of President Biya and his Government, and reported on controversial issues, including corruption, human rights abuses, and economic policies. Since the Government's 1994 and 1995 crackdown on the private press, most private journalists have begun to practice a higher degree of fact checking and thus have increased journalistic accuracy. Journalists continue to be critical of the Government; however, some journalists practiced self-censorship.

Despite the large number of newspapers in the country, the influence of the print media on the average person is minimal. Circulation is low, distribution is problematic outside of Yaounde and Douala, and prices are high. Print media reaches only a tiny percentage of the population, most notably the urban elite. The Cameroon Tribune has a print run of only approximately 5,000; the four most important opposition papers Dikalo, Le Messenger, Mutations, and Nouvelle Expression, have print runs of between 5,000 and 10,000 each.

Since 1996 the Government frequently has prosecuted its critics in the print media under the criminal libel laws. These laws authorized the Government, at its discretion and at the request of the plaintiff, to criminalize a civil libel suit, or to initiate a criminal libel suit in cases of alleged libel against the President and other high government officials. There continued to be allegations that government ministers and other high officials offered to drop criminal libel suits in exchange for cash payments from newspapers or journalists. During the year, the Government did not arrest or prosecute any new cases of libel, but continued to pursue libel cases from the previous year.

The 1999 libel suit against Daniel Atanga, Thierry Mabouza, and Celestin Biake Difana of the French-language biweekly Dikalo was ongoing at year's end.

Formal censorship ceased in 1997. Since 1998, the Government largely has ceased to interfere with private newspaper distribution or seize print runs of private newspapers; however, security forces continued to restrict press freedom by harassing or abusing private print media journalists. Unlike in the previous year, there were no reports that the Government harassed some newspapers through fiscal means. In May 2000, the Government sealed the offices of the Douala-based French-language publication Le Front Independent for one day due to non-payment of taxes estimated at \$21,000 (15 million CFA francs) by the Littoral Province Office of Taxation. In June 2000, the Government again sealed the paper's offices, claiming that arrears had jumped to \$57,000 (40 million CFA francs). The newspaper and the taxation office reportedly were negotiating a deal at year's end.

There were fewer cases of harassment, abuse, and arrests of journalists reported during the year. On July 31, the Government arrested Haman Mana, published of the newspaper Mutations, after he published a list of presidential decrees to reorganize the armed forces. Mana had used a confidential source to gain access to the decrees prior to their formal publication within the state-owned Cameroon Tribune. On July 30, approximately 20 gendarmes surrounded the office of

Mutations and seized between 300 and 500 copies of the edition publishing the decrees. The next day, Mana presented himself at the Gendarmerie for questioning and was detained for 4 days while the authorities attempted to ascertain the name of Mana's confidential source. The Cameroon League of Journalists and Journalists Without Borders criticized the detention.

On July 16, authorities arrested and detained Robert Harris Mindja Meka and Samuel Zang Des Joies, two journalists from "Le Devoir," a French-language opposition weekly, allegedly for publishing false information on high-ranking government officials. It was unknown whether they had been released by year's end.

On July 17, police allegedly threatened, harassed, arrested, and detained Florent Ndjiki, Pierre Clement Tjomb, and Francois Bikoro for "irresponsible reporting" on ruling party officials in their publications "Envoye Special," "L'Anecdote," and "Le Phare," three French-language weekly opposition newspapers. It was unknown whether they had been charged or released by year's end.

On August 22, police arrested and detained journalist George Baongla allegedly for publishing false news in the August 14th issue of "Le Dementi," a minor French-language opposition publication. In the article, he linked the Minister of Economy and Finance to an embezzlement case without citing sources. It was unknown whether they had been charged or released by year's end.

On October 1, the Lottoral Gendarmerie legion commander summoned to Douala, Jean Marc Soboth, editor of La Nouvelle Expression, after he published a story describing security measures taken prior to the October 1 SCNC political rallies. Soboth was detained for 24 hours and reportedly was asked to reveal the names of his sources; he was released without charge, but the Douala Military Tribunal was pursuing an investigation at year's end.

In April 2000, security forces arrested Severin Tchounkeu, publisher of the Douala-based French-language tri-weekly La Nouvelle Expression, and detained him in the cells of the Secretariat of State for Defense for 3 days. The Government had filed a complaint against the paper for its March 31 "April Fool's" article that said that bandits attacked the gendarmerie station in Yaounde, seizing arms, and holding the gendarmes hostage. The Government charged Tchounkeu and Bengono with "dissemination of false news" and released them pending trial.

On June 11, the Government awarded \$137,000 (106 million CFA francs) to Albert Mukong, a journalist and opposition activist, for "abuses suffered at the hands of previous authorities." Mukong, who had been detained from 1988 to 1990 for criticizing the country's one-party system and high-level government officials, fled the country in 1990. His book, Prisoner Without a Crime, was banned in the country. In 1994 Mukong took his case to the U.N. Human Rights Committee, which ruled that his rights to liberty, security of person, and freedom of expression had been violated and recommended that he be compensated for his "exceptionally harsh and degrading treatment."

Radio remains the most important medium for reaching most citizens. There are approximately 2 million radios in the country. Television is less pervasive but still is more influential than the print media. There are an estimated 300,000 to 400,000 television sets in the country, and viewership is high, since many persons watch television in extended family groups or together in commercial establishments.

In 2000 the Government issued a decree that implements the 1990 law liberalizing the broadcast media and sets out the conditions and procedures for establishing independent radio and television stations. Rural radio stations must submit an application to broadcast but are exempt from fees. Potential commercial radio and television broadcasters must submit a licensing application and pay a fee when the application is approved. The annual licensing fees stipulated in the decree potentially are prohibitive: \$15,600 (10 million CFA francs) for radio broadcasters; \$73,000 (50 million CFA francs) for local television stations; and \$146,000 (100 million CFA francs) for national television stations. Nonetheless, the Ministry of Communication has received more than 100 applications from potential broadcasters.

In 2000 five Yaounde-based private radio stations that previously had been broadcasting illegally submitted applications and paid an interim fee of \$727 (500,000 CFA francs). The Government authorized them to continue broadcasting, pending final approval of their application and subsequent payment of the full licensing fee. Of these stations, two are religious: The Pentecostal "Radio Bonne Nouvelle" and "Radio Reine," which is managed by a Catholic priest, though not officially sponsored by the Catholic Church. Two others are affiliated with private nonaccredited academic institutions: NDI Samba University's "Radio Lumiere" and the Siantou University's "Radio Siantou." The fifth station is "Radio Venus," which plays only music. A small number of radio stations that had been broadcasting illegally including "Radio Soleil," which broadcasts from the Muslim quarter of Yaounde, did not apply for licenses, claiming the fees are too high. The Government has not yet acted against these operators.

At year's end, no station had received a license. The five existing nonpolitical stations claim they would not be able to broadcast if they had to pay the licensing fee. In January two new stations submitted complete applications and were to begin broadcasting legally after a 6-month processing and waiting period. One of these stations, "Magic FM," began broadcasting on July 25, but on August 3, it was ordered to shut down for lack of a license. The other station, "Radio Veritas," run by the Catholic Church in Douala and capable of paying the license fee, had not yet begun broadcasting by year's end for fear of being shut down, even though its 6-month period had passed. On March 14, government officials closed down the Bafoussam-based station "Radio Star," which began broadcasting on February 11, for broadcasting illegally. The station's manager never filed an application for Radio Star, although he applied for a license for a Yaounde-based station. Government officials told Radio Star's promoters to file their own applications.

On August 19, police officers physically assaulted Remy Ngono, a journalist from the private radio station "Radio Siantou," who is well-known for his outspoken political commentary during live broadcasts. He was detained overnight at Yaounde's central police station on accusations that he criticized the police in his daily radio program "Free Kick."

The state-owned Cameroon Radio and Television (CRTV) broadcasts on both television and radio and is the only officially recognized and fully licensed broadcaster in the country. The Government levies taxes on all registered taxpayers to finance CRTV programming, giving it a distinct advantage over the new independent broadcasters.

There are several low-power, rural community radio stations mostly funded by foreign countries, with extremely limited range, which broadcast educational programs to small audiences but are not allowed to discuss politics. The April 2000 decree allows for broadcasting of foreign news services but requires them to form a partnership with a national station. The British Broadcasting Company (BBC) and Radio France International (RFI) began broadcasting during the year in partnership with CRTV.

During the year, the Government continued to allow the reception of international cable and satellite television broadcasts.

Like the Cameroon Tribune, CRTV provides broad reporting of CPDM functions, while giving relatively little attention to the political opposition. CRTV management, which in the past repeatedly has instructed CRTV staff to ensure the Government views prevail at all times in CRTV broadcasts, continued during the year to punish CRTV journalists who criticized government policy. In the previous year, CRTV censored a program concerning the Douala Operational Command (see Section 1.a.). CRTV had started broadcasting the program, including portions that reported public allegations of arbitrary arrests, torture, and extortion. The Government censored the second part of the program before it was broadcast, allegedly because the first part had caused some embarrassment to the military hierarchy and the Government. In November 2000, CRTV suspended two journalists for broadcasting a program that criticized members of the ruling party for their lifestyles.

CRTV television and radio programming include a weekly program, Expression Directe, which ostensibly fulfills the Government's legal obligation to provide an opportunity for all political parties represented in the National Assembly to present their views. However, CRTV continued to restrict the opposition SDF party's freedom of speech through that program, occasionally censoring and significantly shortening proposed SDF programming. No information was available on whether the National Council on Communication has ruled on the appeal filed by the SDF and CRTV officials following the March 2000 censorship by CRTV of SDF-produced broadcasts.

High-tech communications, including the Internet, e-mail, and satellite phones, are not available or utilized widely; however, a few cybercafes provide occasional Internet or e-mail access in some urban areas. There are at least six domestic Internet service providers, one of which has been in operation for 4 years; some are owned privately. The Government has not attempted to restrict or monitor these forms of communication.

Although there are no legal restrictions on academic freedom, state security informants operate on university campuses. Many professors believe that adherence to opposition political parties can affect adversely their professional opportunities and advancement. Free political discussion at the University of Yaounde is dampened by the presence of armed government security forces; however, there were no specific cases of harassment reported during the year. Unlike in the previous year, there were no reports that security forces forcibly disrupted student demonstrations or strikes.

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly; however, the Government restricts this right in practice. The law requires organizers of public meetings, demonstrations, or processions to notify government officials in advance; it does not require prior government approval of public assemblies, and does not authorize the Government to suppress public assemblies that it has not approved in advance. However, for many years government officials routinely have asserted that this provision of the Penal Code implicitly authorizes the Government to grant or deny permission to public assemblies, often have not granted permits to assemblies organized by persons or groups critical of the Government, and repeatedly have used force to suppress public assemblies for which it has not issued permits.

In January 2000, two administrative orders banned all political activities in Buea and Limbe, Fako Division, Southwest Province, following a series of secessionist activities in December 1999.

The conditions for government recognition of a political party, a prerequisite for many political activities, were not onerous. More than 150 political parties operated legally, together with a large and growing number of civic associations. However, in past years, the Government has been suspected widely of fomenting splits in the opposition parties.

On January 12, the Minister of Territorial Administration issued an order that banned all public rallies until January 25. The ban was issued to prevent parliamentary opposition parties from holding a rally in Yaounde on January 13, and to prevent other civil society organizations from holding meetings during the France-Africa Summit.

On January 13, at the Warda junction in Yaounde, security forces dispersed an opposition demonstration against the new National Election Observatory, which demonstrators claimed would be subject to government control (see Section 3). Organizers of the rally had applied for the necessary permit; however, government authorities did not issue it as required by law. Members of the President Biya Youth (PRESBY), a ruling party-affiliated organization, also attacked the demonstrators. Security forces detained for 5 hours at the scene John Fru Ndi, National Chairman of the SDF; Dr. Amadou Ndam Njoya, National President of the UDC; Augustin Frederic Kodock, Secretary General of the UPC; Dakole Daissala, National President of the MDR; and other deputies. Approximately 20 SDF supporters were also arrested and detained for several hours.

On January 17, at the Yaounde Chamber of Agriculture, gendarmes disrupted a meeting of the National Committee for Civic Action (CNAC), which had invited foreign guests to a "counter-summit" of the France-Africa Summit that began the same day.

An SDF opposition party deputy alleged that on February 1, gendarmes molested SDF members in Kama, a village of Biwong Bane division, South Province, while the SDF was holding a preparatory meeting for a rally in a private residence. The meeting was disrupted, and five participants were arrested and detained briefly. The SDF alleged that the harassment occurred because the ruling party does not want an opposition party to become popular in the President's native South Province.

On March 4, in the Douala neighborhood of Bepanda, police used water cannons and tear gas to disperse a demonstration to protest the arrest and subsequent disappearance of the Bepanda 9 (see Section 1.b.). Several persons also were arrested. On March 8, at the Douala Les Portiques Plaza, security forces violently dispersed another demonstration on behalf of the Bepanda 9, beat demonstrators, and destroyed their placards. The demonstrators had merged into a march already taking place in commemoration of International Women's Day. It was unknown whether any action was taken against the police in either incident.

On April 15, police in Douala arrested and detained for 2 days 16 persons during an unauthorized demonstration (see Section 1.d.); 20 persons reportedly were injured.

On April 26, the Douala police arrested on unspecified charges Djeukam Tchameni, Leandre Djino, Peter Williams Mandio, Olivier Sande, and Sindjoun Pokam, who were attending a meeting in a private residence in support of the Bepanda 9. The five, who were released on May 3, were members of the Committee against Impunity, which was formed to assist the families of the Bepanda 9.

In mid-September the SCNC began circulating tracts that announced demonstrations on October 1 in Kumbu and Bamenda to mark the SCNC's independence day. In response the Government deployed extra security forces to Kumbu and Bamenda, banned all political rallies between September 26 and October 2, arrested suspected activists, and established curfews in the major cities of the ((Anglophone?)) provinces. SCNC members demonstrated as planned on October 1 in Kumbu and Bamenda. On October 1 in Kumbu, gendarmes shot into a crowd of approximately 400 demonstrators, killed 3 persons, injured 16 persons, and arrested approximately 50 demonstrators (see Section 1.a.). The Government claimed that the SCNC leaders, who were armed, opened fire on the gendarmes, who retaliated. There were other reports indicating that the gendarmes, not the SCNC, initiated the shooting. In Bamenda government forces forcibly dispersed demonstrations, four SCNC demonstrators were injured. On October 1, the Lottoral Gendarmerie legion commander summoned to Douala the editor of La Nouvelle Expression after he published a story describing security measures taken prior to the October 1 SCNC political rallies (see Section 2.a.).

Following the October 1 demonstrations, local authorities banned SCNC-sponsored activities, including several commemorative events, although no action reportedly was taken against those who assembled.

In March 2000, Pierre Minlo, the DGSN in Yaounde, banned three peaceful marches by the UFDC. The UFDC wanted to protest against growing crime in Yaounde and had declared to the sub-divisional officers (sous-prefets) in the three affected neighborhoods their intent to march. In his communique, the DGSN stated that the UFDC had no right to march because it was not represented at the National Assembly, a requirement that does not exist in any of the laws regulating public meetings and processions.

Unlike in the previous year, there were no reports that security forces forcibly disrupted student demonstrations or strikes.

No action reportedly was taken against the members of the security forces who forcibly dispersed demonstrations on the following dates in 2000: November 24; November 13; May 23; and January 27. However, in March six SCNC activists who had been arrested during a demonstration in 2000 were released (see Section 1.d.).

The law provides for freedom of association, and the Government generally respected this right in practice; however, there were some exceptions.

The conditions for government recognition of a political party, a prerequisite for many political activities, were not onerous. More than 150 political parties operated legally, together with a large and growing number of civic associations. However, in past years, the Government has been suspected widely of fomenting splits in the opposition parties.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respects this right in practice; however, there were some exceptions.

In general the Law on Religious Congregations governs relations between the State and religious groups. Religious groups must be approved and registered with the Ministry of Territorial Administration in order to function legally; there were no reports that the Government refused to register any group. It is illegal for a religious group to operate without official recognition, but the law prescribes no specific penalties for doing so. Although official recognition confers no general tax benefits, it does allow religious groups to receive real estate as gifts and legacies for the conduct of their activities. In order to register, a religious denomination must fulfill the legal requirement to qualify as a religious congregation. This definition includes "any group of natural persons or corporate bodies whose vocation is divine worship" or "any group of persons living in community in accordance with a religious doctrine." The denomination then submits a file to the Minister of Territorial Administration. The file must include a request for authorization, a copy of the charter of the group that describes planned activities, and the names and respective functions of the officials of the group. The Minister studies the file and sends it to the presidency with a recommendation for a positive or negative decision. The President generally follows the recommendation of the Minister, and authorization is granted by a presidential decree. The approval process usually takes several years, due primarily to administrative delays. The only religious groups known to be registered are Christian and Muslim groups and the Baha'i Faith, but other groups may be registered. The Ministry has not disclosed the number of registered denominations, but the number of registered religious groups is estimated to be in the dozens. The Government does not register traditional religious groups on the grounds that the practice of traditional religions is not public but rather private to members of a particular ethnic or kinship group, or to the residents of a particular locality.

Disputes within registered religious groups about control of places of worship, schools, real estate, or financial assets are resolved in the first instance by the executive branch rather than by the judiciary.

Government officials criticized and questioned criticisms of the Government by religious institutions and leaders, but there were no reports that Government officials used force to suppress such criticism.

The sites and personnel of religious institutions have not been exempt from the widespread human rights abuses committed by government security forces; however, there were fewer reports of such abuse than in previous years.

On July 1, police arrested and detained overnight approximately 60 persons who were leaving the Douala Cathedral after the evening Mass (see Section 1.d.).

No action reportedly was taken against the members of the security forces who attacked and beat parishioners at Notre Dame de Sept Douleurs in 2000.

In April 2000, the Ministry of National Education announced the suspension of two teachers of the Bertoua technical high school. The two teachers were accused of having "enticed" some of their students into their religious group.

The practice of witchcraft is a criminal offense under the law; however, persons generally are prosecuted for this offense only in conjunction with some other offense, such as murder. Witchcraft traditionally has been a common explanation for diseases of which the causes were unknown.

There was a media report that in September 1999 traditional authorities in Lobe, in N'dian Division of the Southwest Province, banished from the locality six persons, including one blind man, accused of having killed a woman by practicing witchcraft. According to the report, a traditional court tried the accused by requiring them to drink poison that traditionally is believed to kill only those who lie to the court, convicted the accused when they refused to drink, ordered them to pay in-kind, blood-price damages, and expelled them from the locality when they refused to pay. The accused reportedly filed a protest with the divisional officer of the central Government; however, initial investigations could not confirm this report.

On April 20, Appolinaire Ndi, a parish priest in the Yaounde diocese, was murdered. On May 18, Father Henri Djeneka, a Polish priest at St. Andrew's Parish Karna in Ngoundere, was shot and killed. An investigation was ongoing into both killings at year's end.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights; however, in practice government security forces routinely impeded domestic travel. Police frequently stopped travelers to check identification documents, vehicle registrations, and tax receipts as security and immigration control measures. Police commonly demanded bribes from citizens whom they stopped at roadblocks or at other points.

Roadblocks and checkpoints manned by security forces have proliferated in cities and most highways and make road travel both time-consuming and costly, since extortion of small bribes was commonplace at these checkpoints. In past years, violent and sometimes fatal confrontations have occurred repeatedly at such checkpoints when travelers would not or could not pay the bribes demanded by the security forces.

There were credible reports that police arrested and beat individuals who failed to carry their identification cards (see Sections 1.c., 1.d., and 1.f.).

On January 15, security forces stopped and detained temporarily Mboua Massock, a political and human rights activist, on the Douala-Yaounde highway at the town of Boumnyebel. Massock was conducting a march from Douala to Yaounde, where he had wanted to express his views on the France-Africa Summit being held there.

On April 1, security forces erected a roadblock on the Yaounde-Douala highway, allegedly to prevent eight SDF deputies from attending a demonstration in support of the Bepanda 9 in Douala (see Section 2.b.). The roadblock was lifted at 6:30 p.m. that day.

On June 5 and December 28, Douala airport police arrested and confiscated the passport of human rights activist Dominique Djeukam Tchameni, bureau chairman of the National Committee against Impunity (CNI) when he returned from a trip to Belgium during which he filed a lawsuit against President Biya (see Section 1.d.).

The law provides for the granting of asylum and refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government cooperates with the office of the U.N. High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees. The country has long been a safehaven for displaced persons and refugees from nearby countries. The Government provides first asylum to persons who arrive at the border without documentation but who can show a valid claim to refugee status. In 2000 the UNHCR estimated that there were approximately 47,000 refugees in the country for whom Cameroon was a country of first asylum; however, some NGO's claim that the number is as high as 60,000. The majority of these persons are Chadians, whose total number was estimated to be more than 41,000. In May 1999, the UNHCR began a repatriation program for Chadian refugees. In July the Yaounde office of the UNHCR organized the voluntary repatriation of 500 of the remaining Chadians. Approximately 40,000 additional Chadians remained in the country at year's end; however, since they have been in the country for many years and have not chosen to be repatriated voluntarily, the UNHCR no longer considered them refugees. Other refugees principally were from Rwanda, Burundi, and the Democratic Republic of the Congo, with small numbers from Liberia, Sudan, and Ethiopia. The Government accepts for resettlement refugees who are granted refugee status by the UNHCR.

The UNHCR ceased operations in the country on December 31; the UNHCR office in Gabon will take over responsibility for refugees.

Some illegal immigrants have been subjected to harsh treatment and imprisonment. Communities of Nigerians and Chadians often have been the targets of police and gendarme harassment. During raids members of the security forces often extort money from those who do not have regular residence permits or those who do not have valid receipts for store merchandise

There were no confirmed reports of the forced return of persons to a country where they feared persecution.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides that citizens have the right to change their government; however, dominance of the political process by the President and his party severely limits the ability of citizens to exercise this right. President Paul Biya has controlled the Government since 1982 and the ruling party since 1985. The 1992 and 1997 presidential elections and the 1997 legislative contests were criticized widely and viewed as fraudulent by international and domestic observers. In these elections, which were administered by the Ministry of Territorial Administration, members of largely pro-opposition ethnic groups and inhabitants of largely pro-opposition localities effectively were prevented from registering or voting, registration and vote counting procedures were not transparent, a public announcement of results was delayed, and the number of votes cast in some progovernment areas exceeded the adult population.

The 1996 amendments to the 1972 Constitution retained a strongly centralized system of power, based on presidential authority. However, the amendments imposed a limit of two 7-year terms on the President. They provided for the creation of a partially elected (70 percent) and partially appointed (30 percent) senate, along with the creation of a similarly constituted set of provincial assemblies with limited power over local affairs. Although promulgated by the President in 1996, the senate and regional council amendments were not yet implemented by year's end.

Elections are held by balloting that officially is described as secret but may permit voters to leave the polling place with evidence of how they voted. At polling places on election day, registered citizens receive a package containing one card for each candidate. While alone inside a closed booth, citizens choose a ballot and seal it into an envelope. Citizens then exit the booth and vote by depositing the sealed envelope into a ballot box. Polling officials are supposed to provide a method by which voters can dispose of the unused ballots privately before exiting the closed booth, but this rarely was done in the 1996 or 1997 elections.

President Biya's October 1997 reelection was marred by serious procedural flaws as well as a boycott by the three major opposition parties. While the boycott made the outcome a foregone conclusion, most observers nonetheless considered the contest to be neither free nor fair. Election irregularities especially were egregious in opposition strongholds, where boycotting opposition activists chose not to be present to monitor the voting count.

In December 1997, after the Supreme Court announced the official election results declaring President Biya the winner with 92.57 percent of the vote, the UNDP, which previously had been an opposition party, joined the CPDM in a coalition government. The new ruling coalition also included a faction of the UPC party, which was not the same faction that had participated in previous CPDM-dominated coalition governments under President Biya.

The Biya Government has proven particularly intolerant of opposition from within its Beti/Bulu ethnic-regional base in the Center Province. Following the unexpectedly strong showing of opposition parties in the region in the 1996 municipal elections, Titus Edzoa, a ruling CPDM member from the southern part of the country, a former Minister of Health, and a longtime presidential aide, declared himself a candidate to oppose incumbent President Biya in the October 1997 election. Edzoa and his campaign manager were arrested shortly after he declared his candidacy and before the election was held. They were sentenced to 15 years' imprisonment on embezzlement and corruption charges and remained incarcerated at year's end (see Section 1.e.).

The President's control over the country's administrative apparatus is extensive. The President appoints all Ministers, including the Prime Minister. The ministers serve at the President's pleasure. The President also directly appoints the governors of each of the 10 provinces. The governors wield considerable power in the electoral process, interpreting the laws and determining how these should be implemented. The President also has the power to appoint important lower level members of the 58 provincial administrative structures, including the senior divisional officers, the divisional officers, and the

district chiefs. The governors and senior divisional officers wield considerable authority within the areas under their jurisdiction, including, significantly, the authority to ban political meetings that they deem likely to threaten public order (see Section 2.b.). They also may detain persons for renewable periods of 15 days to combat banditry and other security threats (see Section 1.d.).

The right of citizens to choose their local governments remained circumscribed. In 1996 the Government held local government elections that were unprecedented in the Francophone region and the first such elections since the 1960's in the Anglophone region. These elections were for mayors or deputy mayors and council members in Douala, Yaounde, provincial capitals, and some division capitals. President Biya first promised such elections in 1992, but postponed them twice. In the meantime, the Government greatly increased the number of municipalities run by presidentially-appointed delegates, who have authority over elected mayors. Delegate-run cities, of which there were only four in 1992, by 1996 included most of the provincial capitals and some division capitals in pro-opposition provinces, but not in the southern provinces that had tended to support the CPDM. In 1998 a 60-member Committee on Good Governance, created by the Government, publicly recommended that the Government eliminate the position of delegate to allow elected local officials to manage municipal governments more freely. Even in municipalities with elected mayors, local autonomy is limited, since elected local governments must rely on the central Government for most of their revenues and their administrative personnel.

The 1996 municipal elections were less flawed than other elections held since 1990. Foreign observers considered the elections largely free and fair, having detected few instances of malfeasance during or after the voting; however, opposition parties credibly alleged systematic preelection government manipulation of the registration lists and arbitrary government disqualification of their candidates, especially in the South. Government election authorities acknowledged that opposition candidates won 104 of the 336 offices at stake. Ninety-six contests in which the Government declared the ruling party candidate the winner were appealed to the Supreme Court, which declared itself unqualified to adjudicate many of these complaints, but nullified the results of 18 elections, which it ordered the Government to hold again. As of year's end, the Government had not complied with any of these Supreme Court orders.

Following the flawed 1997 legislative elections, international observers endorsed a series of reform measures, including the creation of a permanent and autonomous electoral commission to replace the present system of elections run by the Ministry of Territorial Administration. The Government's control of the electoral process leads to a variety of abuses including pre-election manipulation of voter registration lists.

In December 2000, the National Assembly passed legislation that created the National Election Observatory; the President signed the law in early January. The law provides for the Observatory to supervise electoral procedures from the registration of voters to the collection of reports after the polls; all polling stations are expected to have a representative from the Observatory. The law also provides that the Observatory have a presidentially appointed national office to appoint local offices at the levels of provinces, divisions, subdivisions, and districts. Both opposition parties and independent observers have expressed concern that the Observatory may be subject to influence from the ruling CPDM party because all of its 11 central members will be appointed by the President. The Observatory was implemented in October. The scheduled January 2002 municipal elections were postponed in early December, ostensibly to give the Observatory time to ensure free and fair elections. Municipal elections were rescheduled for July 2002.

There were no new developments in the 1999 criminalized civil libel case against SDF Party Chairman John Fru Ndi by a disgruntled former SDF official. Fru Ndi's February 1999 felony conviction still is pending an appeal in the Yaounde High Court. Some observers believe that Fru Ndi's conviction might enable the Government in the future to disqualify him for any public office for which he may seek to run.

The percentages of women and minorities in government or politics does not correspond to their percentages of the population; however, there are no laws that specifically prohibit women or members of minorities from participating in government, in the political process, or in other areas of public life. Women hold 3 of 50 cabinet posts, 10 of 180 seats in the National Assembly, and a few of the higher offices of major political parties, including the CPDM.

Many of the key members of the Government are drawn from the President's own Bulu/Beti ethnic group, as are disproportionately large numbers of military officers and CPDM officials. Members of some of the other 200 ethnic groups hold 30 cabinet seats, compared with 18 cabinet positions held by members of the President's ethnic group.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups generally operate without government restriction, investigating and publishing their findings on human rights cases. Government officials are generally cooperative and responsive to their views. The activities of virtually all of these groups are limited by a shortage of funds and trained personnel. Observers have criticized the country's NGO law for giving the Government loopholes with which it could eliminate NGO's by fiat. In the past, the Government used this authority to approve or withhold official recognition of NGO's. During the year, there were a few unconfirmed reports of the arbitrary cancellation of the legal status of several small local NGO's working in the East Province investigating the illegal activities of logging companies. Government officials repeatedly impeded the effectiveness of human rights NGO's by limiting access to prisoners, by refusing to share information, and increasingly by threatening and using violence against personnel of human rights NGO's (see Sections 1.c. and 1.d.).

Domestic human rights NGO's include the National League for Human Rights, the Organization for Human Rights and Freedoms, the Association of Women Against Violence, the Cameroonian Association of Female Jurists, the Cameroonian Association for Children's Rights, Conscience Africaine, the MDHRL, the Human Rights Defense Group, the National Association of Nontribalists and Nonracists, the Committee of Action for Women's and Children's Rights (CADEF), the Human Rights Clinic and Education Center, the Association of Women against Violence, the Cameroon National Association for Family Welfare (CAMNAFAW), Tribes Without Frontiers (TSF), the Association for the Promotion of Communal Initiatives, and the League for Rights and Freedoms (LDL). Many held seminars and workshops on various aspects of human rights.

In August a domestic NGO activist was tried on charges of defamation (see Section 2.a.).

In 1999 the Government generally cooperated with the U.N. Special Rapporteur for Human Rights on a visit to the Far North Province, but Colonel Pom's special antigang gendarmerie unit denied him access to its holding cells (see Section 1.c.). In 1999 the Government allowed the ICRC, for the first time in 7 years, to have generally unrestricted access to all prisons and detention places and to hold private discussions with inmates.

The government-established NCHRF, although hampered by a shortage of funds, conducted a number of investigations into human rights abuses, visited prisons, and organized several human rights seminars aimed at judicial officials, security personnel, and other government officers. Although the Commission infrequently criticized the Government's human rights abuses publicly, its staff intervened with government officials in specific cases of human rights harassment by security forces, attempted to stop Friday arrests (see Section 1.d.), and attempted to obtain medical attention for jailed suspects in specific cases. The law prohibits the NCHRF from publishing information on specific human rights cases. However, it may and does submit reports on specific alleged abuses to the government authorities directly involved, along with recommendations for improving conditions or punishing violators. In the past, the NCHRF sent teams to Douala to investigate allegations of extrajudicial killings by the Operational Command (see Section 1.a.). Although the Commissioner sent two reports to the President and the Prime Minister, there are no plans to release the reports publicly.

The UNHCR ceased operations in the country on December 31; the UNHCR office in Gabon will take over responsibility for refugees (see Section 2.d.).

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution does not explicitly forbid discrimination based on race, language, or social status. The Constitution prohibits discrimination based on sex and mandates that "everyone has equal rights and obligations," but the Government did not enforce these provisions effectively.

Women

Domestic violence against women is common. Women's rights advocates report that the law does not impose effective penalties against men who commit acts of domestic violence. There are no gender-specific assault laws, despite the fact that women were the predominant victims of domestic violence. Spousal abuse is not a legal ground for divorce. In cases of sexual assault, a victim's family or village often imposed direct, summary punishment on the suspected perpetrator through extralegal means ranging from destruction of property to beating. While there are no reliable statistics on violence against women, the large number of newspaper reports, which observers believe are a fraction of actual incidents, indicated that it is widespread.

Female genital mutilation (FGM), which has been condemned by international health experts as damaging to both physical and psychological health, is not practiced widely, but it is traditional and continues to be practiced in some areas of Far North and Southwest Provinces. It includes the most severe form of the abuse, infibulation, and usually is practiced on preadolescent girls. The Government has criticized the practice; however, no law prohibits FGM.

Despite constitutional provisions recognizing women's rights, women did not, in fact, enjoy the same rights and privileges as men. Civil law theoretically provides equal status and rights for men and women; however, no legal definition of discrimination exists, and some points of civil law are prejudicial to women. The law allows a husband to oppose his wife's right to work in a separate profession if the protest is made in the interest of the household and the family. While the law gives a woman the freedom to organize her own business, the law allows a husband to end his wife's commercial activity by notifying the clerk of the commerce tribunal of his opposition based upon the family's interest. Partly for this reason, some employers required a husband's permission before they hired a woman.

Polygyny is permitted by law and tradition, but polyandry is not. In cases of divorce, the husband's wishes determine the custody of children over the age of 6. While a man may be convicted of adultery only if the sexual act takes place in his home, a female may be convicted without respect to venue.

Civil law offers a more equal standard than customary law, which is far more discriminatory against women, since in many regions a woman customarily is regarded as the property of her husband. Because of the importance attached to customs and traditions, laws protecting women often were not respected. Despite the law that fixes a minimum age of 15 years for a bride, many girls are married off by their families by the age of 12 years. In the customary law of some ethnic groups, husbands not only maintain complete control over family property, but also can divorce their wives in a traditional court without being required to provide either verifiable justification or alimony. Traditional law normally governs the extent to which a woman may inherit from her husband in the absence of a will, and customs vary from group to group. In many traditional societies, custom grants greater authority and benefits to male than to female heirs. Another problem facing women is forced marriage; in some regions, girls' parents can and do give them away in marriage without their consent. Often, the husband, who sometimes is many years older than the girl, pays a bride's parents a "bride price." Since a price has been paid, the girl is considered the property of the husband. When a married man dies, his widow often is unable to collect any inheritance, since she herself is considered part of the man's property. Often the widow is forced to marry one of the deceased's brothers. Refusal means that she must repay the bride price in full (she usually has no source of funds) and leave the family property. In the northern provinces, some Lamibe (traditional rulers) reportedly prevent their wives and concubines from leaving their palaces. The lack of a national legal code covering the family leaves women defenseless against male-oriented customs.

ALVF, one of the few domestic NGO's dedicated to fighting violence against women, reported that while the situation had not changed very much on the ground during the year, women's issues were at least being discussed more often and more openly by the country's political leaders. In July ALVF organized a seminar on early marriages in Maroua, Far North Province. Early marriage is prevalent especially in this remote province, and many young women face severe health risks from pregnancies as early as 13 or 14.

Children

The Constitution provides for a child's right to education, and schooling is mandatory through the age of 14 years. After almost a decade of budget cuts for education, the Government took measures during the year to improve access to schools. In 2000 President Biya announced the elimination of tuition fees for public elementary schools. In 2000 the National Assembly passed a budget bill that increased spending on national education by 49 percent. Nonetheless, education spending during the 1999 and 2000 fiscal year was only approximately 2 percent of Gross Domestic Product (GDP). Since parents must pay uniform and book fees for primary school, and because tuition and other fees for secondary education remained even more costly, education remained unaffordable for many children.

According to 1998 Government statistics, approximately 3.5 million children, or 81 percent of all children, were enrolled in school; however, school enrollment varied widely by region. In the Far North Province, it is reported that well under 50 percent of children attended school; the majority of these were boys. In practice although not in law, girls suffer from discrimination in access to education throughout the country. The gap in school attendance was 14 percent nationally and 34 percent in the two northern provinces. This problem, which was especially acute in rural areas, results in higher levels of illiteracy among women than among men. According to a 1995 study by a U.N. agency, the adult literacy rate was 75 percent for men but only 52 percent for women. In addition fewer girls were found at higher levels of education; according to a 1998/1999 study by the Technical Steering Committee of the Social Statistics Reference, women made up only 25 percent of students in specialized professional training programs.

The degree of familial child abuse was not known but is one of several targeted problems of children's rights organizations. During a crime wave in the country's largest cities of Yaounde and Douala, newspaper reports often cited children as victims of kidnaping, mutilation, and even infanticide. There were several credible stories of mothers (usually young, unemployed, and unmarried) abandoning newborns in streets, garbage cans, and pit toilets. The Yaounde-based Center for Helpless Children, created by the Minister of Social Affairs in 1997, currently harbored 24 abandoned or abused children, a small fraction of the suspected cases of abused, abandoned, or neglected children.

Reports also indicated an alarming trend in the country's prisons of incarcerating juvenile offenders with adult prisoners, occasionally in the same cells or wards (see Section 1.c.). There are credible reports of sexual abuse of juvenile prisoners by adult inmates. The law specifies that children should not be detained without trial beyond 3 months after an investigation, but the Government detained children for longer periods of time. In June press sources indicated that between 34 and 38 children are detained in the Douala New Bell Prison. Some children (particularly infants) are jailed with their detained mothers.

FGM is performed primarily on young girls (see Section 5, Women).

There were reports of forced child labor, child prostitution, and trafficking in children during the year (see Sections 6.c., 6.d., and 6.f.).

Persons with Disabilities

The law provides certain rights to persons with disabilities. These include access to public institutions, medical treatment, and education. The Government is obliged to bear part of the educational expenses of persons with disabilities, to employ them where possible, and to provide them with public assistance when necessary. However, the Government rarely respects these rights. There are few facilities for persons with disabilities and little public assistance of any kind. Lack of facilities and care for persons with mental disabilities is particularly acute. In recent years, the Government reportedly has reduced the share of its expenditures that benefit persons with disabilities and has terminated subsidies to NGO's that help them. Society tended to treat those with disabilities as tainted, and many persons felt that providing assistance is the responsibility of churches or foreign NGO's. The law does not mandate special access provisions to buildings and facilities for persons with disabilities.

In June the Cooperative of the Handicapped Persons of Cameroon occupied two abandoned government residences in Yaounde and Douala in order to have locations where the cooperative could lead its social activities in lieu of scarce resources. On September 10, several blind persons blocked the road junction in Yaounde between the Ministry of Education

and the Prime Minister's office and asked to speak to the Prime Minister about the eviction of several blind persons from a building in which they were living illegally. The Prime Minister refused to meet with the group.

Indigenous People

A population of perhaps 50,000 to 100,000 Baka (Pygmies), a term that encompasses several different ethnic groups, primarily reside in the forested areas of the South and East provinces, of which Pygmies were the earliest known inhabitants. While no legal discrimination exists, other groups often treat Pygmies as inferior and sometimes subject them to unfair and exploitative labor practices. There have been credible reports of Pygmies being forced out of their homes by logging companies and security forces. Pygmies reportedly continued to complain that the forests they inhabit were being logged without fair compensation. Some observers believe that sustained logging is destroying the Pygmies' unique, forest-oriented belief system, forcing them to adapt their traditional social and economic systems to a more rigid modern society similar to their Bantu neighbors. Local Pygmies along the proposed path of the Chad-Cameroon pipeline continue to complain that they have not been compensated fairly for their land like their Bantu neighbors. Others alleged that they have been swindled of their compensation by persons posing as Pygmy representatives.

An estimated 95 percent of Pygmies did not have national identity cards; most Pygmies can not afford or provide the necessary documentation to obtain the identification, which is required to vote in national elections.

Religious Minorities

Approximately 40 percent of the population are at least nominally Christian, an estimated 20 percent are at least nominally Muslim, and approximately 40 percent practice traditional indigenous religions or no religion. Of Christians, approximately half are Catholics, and approximately half are affiliated with Protestant denominations. Christians are concentrated chiefly in the southern and western provinces; the two Anglophone provinces of the western region largely are Protestant; and the Francophone provinces of the southern and western regions largely are Catholic. Muslims are concentrated mainly in the northern provinces, where the locally dominant Fulani (or Peuhl) ethnic group is overwhelmingly Muslim, and other ethnic groups, known collectively as the Kirdi, generally are partly Islamicized. The Bamoun ethnic group of the western provinces also is largely Muslim. Traditional indigenous religions are practiced in rural areas throughout the country but rarely are practiced publicly in cities, in part because many such religions are intrinsically local in character.

Relations among different religious groups generally were amicable; however, some religious groups faced societal pressures within their regions. In the northern provinces, especially in rural areas, societal discrimination by Muslims against persons who practiced traditional indigenous religions was strong and widespread. Some Christians in rural areas of the north complain of discrimination by Muslims; however, no specific incidents or violence stemming from religious discrimination were reported, and the reported discrimination may reflect ethnic as much as religious differences.

The northern region suffers from ethnic tensions between the Fulani, a Muslim group that conquered most of the region 200 years ago, and the Kirdi, the descendants of groups that practiced traditional indigenous religions and whom the Fulani conquered or displaced, justifying their conquest on religious grounds. Although some Kirdi subsequently have adopted Islam, the Kirdi remain socially, educationally, and economically disadvantaged relative to the Fulani in the three northern provinces. The slavery still practiced in parts of the north is reported to be largely enslavement of Kirdi by Fulani (see Section 6.c.).

National/Racial/Ethnic Minorities

The population is divided into more than 200 ethnic groups, among which there are frequent and credible allegations of discrimination. Members of virtually all ethnic groups commonly provide preferential treatment to fellow members when they were able to do so. Ethnic-regional differences continued to pose obstacles to political and economic liberalization.

Members of President Biya's Bulu ethnic group and of closely related Beti groups of southern parts of the country are represented disproportionately and hold key positions in government, the civil service, state-owned businesses, the security forces, the military, and the ruling CPDM party. The large size and centralized character of the public sector has long been perceived widely to favor these groups. Prospective economic and political liberalization is perceived widely as being likely to harm these groups, and to favor other groups, such as the large Bamileke and Anglophone ethnic-cultural groups of the west, whose members tended to be more active in private commerce and industry and have tended to support the SDF since the legalization of opposition parties. Since 1990 natives of the two Anglophone provinces, the Northwest and Southwest Provinces, have suffered disproportionately from human rights violations committed by the Government and its security forces (see Sections 1.c., 1.d., and 1.e.); have been underrepresented in the public sector; and generally believed that they have not received their fair share of public sector goods and services. Since the flawed 1992 presidential election in which an Anglophone candidate was denied the Presidency (see Section 3), many residents of the Anglophone region have sought to achieve greater freedom, greater equality of opportunity, and better government, by regaining regional autonomy rather than through nationwide political reform. They have formed several quasi-political organizations to pursue that goal.

At least one Anglophone group, the SCNC, advocates secession from the country. Subsequent to SCNC secessionist incidents in 1999, such activity calmed considerably in 2000 and during the year; however, the Government continued to hold some SCNC activists or suspected SCNC supporters in detention without trial (see Sections 1.c., 1.d., and 1.e.). The opposition SDF party, whose base of support rests in the Anglophone provinces, reiterated its commitment to pursuing nonviolent political struggle to restore a federal republic.

Northern areas of the country suffered from ethnic tensions between the Fulani (or Peuhl) and the "Kirdi." The Kirdi remained socially, educationally, and economically disadvantaged relative to the Fulani in the three northern provinces. Traditional Fulani rulers (Lamibe) continue to wield great power over their subjects, often including Kirdi, sometimes subjecting them to tithing and forced labor (see Section 6.c.). The slavery still practiced in northern parts of the country was reported largely to be enslavement of Kirdi by Fulani. Although the UNDP party is based largely in the Fulani community, the ruling CPDM party has long been perceived widely to represent Fulani as well as Beti-Bulu interests.

Members of the country's large community of Nigerian immigrants often complained of illegal discrimination and even persecution by elements of the Government (see Section 2.d.). Government officials repeatedly have announced crackdowns on undocumented Nigerian immigrants.

Section 6 Worker Rights

a. The Right of Association

The law allows workers to form and join trade unions; however, it imposes numerous restrictions. The law requires that unions register with the Government; it permits groups of at least 20 workers to organize a union by submitting a constitution, internal regulations, and nonconviction certifications for each of the 20 founding members. For unions in the private sector, the Government requires registration with the Ministry of Labor, Employment, and Social Insurance. Unions for public sector workers must register with the Ministry of Territorial Administration. The law does not permit the creation of a union that includes both public and private sector workers. The Government indicated that it remits certification within 1 month of union application; however, in practice independent unions, especially in the public sector, have found it difficult to obtain registration. In addition the requirement for union registration apparently contradicts the International Labor Organization (ILO) Convention 87, to which the country signed and agreed in 1960, and which states that unions have the right to exist through declaration, not through government recognition or registration. Registered unions were subject to government interference. The Government chooses the unions with which it will bargain; some independent unions have accused the Government of creating small, nonrepresentative unions amenable to the government position and with which it can negotiate. Some sections of the law never have taken effect because the presidency has not issued implementing decrees.

There are two trade union confederations: The Confederation of Cameroonian Trade Unions (CCTU), and the Union of Free Trade Unions of Cameroon (USLC). In 1997 the CCTU split into two rival factions, and the Government banned a conference by the CCTU's reformist faction, led by Benoit Essiga. A CCTU Congress held in 1999, which was attended by international observers and held under the auspices of the ILO, elected the reform faction slate of candidates to the CCTU leadership positions. However, the losing faction did not accept the results and continued to claim that it is the real CCTU. The Ministry of Labor, Employment, and Social Insurance has stated that it will not recognize the new CCTU leadership as long as another CCTU faction used the same name. In 1998 the new CCTU leadership took their case to court and won; however, the Ministry of Labor, Employment, and Social Insurance continues to withhold official status. Other ministries within the Government informally recognize the new CCTU leadership and included them in appropriate seminars and invitations. In 2000 the Ministry of Labor, Employment, and Social Insurance appeared to back publicly the losing CCTU faction at the expense of the reformist faction; however, a court declared an August "unity" conference, attended by 400 persons, illegal, stating that only the reformist faction of the CCTU had the power to convoke such a conference.

The Labor Code explicitly recognizes workers' right to strike, but only after mandatory arbitration. Arbitration proceedings are not enforceable legally and can be overturned or simply ignored by the Government. The law provides for the protection of workers engaged in legal strikes and prohibits retribution against them; however, these provisions of the law do not apply to civil servants, employees of the penitentiary system, or workers responsible for national security. Instead of strikes, civil servants are required to negotiate grievances directly with the minister of the concerned department and with the Minister of Labor.

During the year, labor unrest continued. There were strikes by workers in various state-owned companies and in the public service. In early January in Yaounde and Douala, primary school teachers went on strike to demand better pay. In mid-March workers of the Naval Shipyard launched a strike following the dismissal of two labor representatives. In late March, some workers on the Chad-Cameroon pipeline in the area of Nkongmeyos, Center Province, went on strike to demand better pay and contracts. On March 21 and 22, members of a primary education teachers union went on strike. On March 21, three of these teachers were arrested and released the next day. In early June, employees of the Douala II municipal council went on strike for unpaid back wages.

The CCTU is a member of the Organization of African Trade Unions and the International Confederation of Free Trade Unions. The USLC is a member of the Organization of African Trade Unions.

b. The Right to Organize and Bargain Collectively

The law provides for collective bargaining between workers and management in workplaces, as well as between labor federations and business associations in each sector of the economy; however, no formal collective bargaining negotiations have taken place since 1996. When labor disputes arise, the Government chooses which labor union to invite into the negotiations, selectively excluding some labor representatives. Once agreements are negotiated, there is no mechanism to enforce implementation; some agreements between the Government and labor unions have been shelved or ignored by the Government after being negotiated.

The law prohibits antiunion discrimination, and employers guilty of such discrimination are subject to fines of up to an amount equivalent to approximately \$1,600 (1 million CFA francs). However, employers found guilty are not required to compensate the workers against whom they discriminated or to reinstate fired workers. The Ministry of Labor has reported no complaints of such discrimination during recent years; however, one organizer of the Union for Telecommunications Workers has claimed that his state-owned company demoted him due to his union activism.

There is an industrial free trade zone regime, but the Government did not grant approval to any firms to operate under it during the year. Free trade zone employers are exempt from some provisions of the Labor Code but must respect all internationally recognized worker rights.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor; however, it occurs in practice. The authorities continued to allow prison inmates to be contracted out to private employers or used as communal labor for municipal public works.

There were credible reports that slavery continued to be practiced in northern parts of the country, including in the Lamidat of Rey Bouba, a traditional kingdom in the North Province (see Section 5). In the South and East Provinces, some Baka (Pygmies), including children, continued to be subjected to unfair and exploitative labor practices by landowners, such as working on the landowners' farms during harvest seasons without payment (see Section 5).

Trafficking in persons is a problem (see Section 6.f.).

The Government does not prohibit forced and bonded labor by children, and there were reports that it occurred in practice (see Section 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

The law protects children in the field of labor and education and specifies penalties ranging from fines to imprisonment for infringement of the law. On April 17, President Biya signed the decree that ratified ILO Convention 138 that sets the minimum age for the employment of children. The minimum age for the employment of children is 14 years of age. The law also bans night work and enumerates tasks that cannot be performed legally by children between the ages of 14 and 18 years. These tasks include moving heavy weights, dangerous and unhealthy tasks, working in confined areas, or tasks, such as prostitution, which could hurt a child's morality. The law also states that a child's workday cannot exceed 8 hours. Employers are required to train children between the ages of 14 and 18, and work contracts must contain a training provision for minors. The law prohibits children from working before 6 a.m. or after midnight, though this prohibition is not enforced effectively.

According to an ILO study conducted in 2000 in conjunction with local NGO's and the Ministry of Labor, child labor remains a serious problem (see Section 6.f.), although the Government has made some progress to address it. The ILO estimated there were 602,000 child laborers and that 530,000 were subjected to the worst forms of child labor. In the nation's major cities of Yaounde, Douala, and Bamenda, between March and April, the ILO estimated that 40 percent of employed children were girls, 7 percent were less than 12 years of age, and 60 percent had dropped out of primary schools.

The Ministry of Social Affairs and the Ministry of Labor are responsible for enforcing existing child labor laws through site inspections of registered businesses; however, lack of resources inhibited an effective inspection program. Moreover, the legal prohibitions do not include family chores, which in many instances are beyond a child's capacity to do. According to the ILO study, child labor in cities existed mainly in the informal sector such as street vending, car washing, agricultural work, and domestic service. An increasing number of children worked as household help, and some children were involved in prostitution. In the north of the country, there were credible reports that children from needy homes were placed with other families to do household work for money.

In rural areas, many children begin work at an early age on family farms. Often, relatives employed rural youth, especially girls, as domestic helpers, while many urban street vendors were less than 14 years of age.

The Government has signed, but not ratified ILO Convention 182 on the worst forms of child labor.

The Government does not prohibit forced and bonded labor by children, and there were reports that it occurred in practice (see Sections 6.c. and 6.f.).

Trafficking in children is a serious problem, and the country is a source, destination, and transit point for trafficked children (see Section 6.f.).

e. Acceptable Conditions of Work

Under the law, the Ministry of Labor is responsible for setting a single minimum wage applicable nationwide in all sectors. The minimum wage is approximately \$40 (23,514 CFA francs) per month. It does not provide a decent standard of living for an average worker and family.

The law establishes a standard workweek of 40 hours in public and private nonagricultural firms, and 48 hours in agricultural and related activities. The law makes compulsory at least 24 consecutive hours of weekly rest.

The Government sets health and safety standards, and Ministry of Labor inspectors and occupational health doctors are responsible for monitoring these standards; however, they lacked the resources for a comprehensive inspection program. There is no specific legislation permitting workers to remove themselves from dangerous work situations without jeopardy to continued employment.

f. Trafficking in Persons

The law provides that any person who engages in any trafficking in persons shall be punished with imprisonment of between 10 and 20 years, and that the court may also impose a forfeiture penalty. Trafficking is a problem, and the country is a source, transit, and destination point for internationally trafficked persons; trafficking also occurs within the country. An ILO report in 2000 pinpointed trafficking in children as especially serious. Children are trafficked from and through the country to other West African countries for indentured or domestic servitude, farm labor, and sexual exploitation. In 2000 the Government signed, but has not yet ratified, the U.N.-sponsored protocol concerning trafficking in persons.

An ILO study conducted in March and April 2000 in Yaounde, Douala, and Bamenda, revealed that trafficking accounted for 84 percent, or approximately 530,000, of an estimated 610,000 child laborers (see Section 6.d.). In most cases, intermediaries presented themselves as businessmen, approaching parents with large families or custodians of orphans and promising to assist the child with education or training. The intermediary paid parents an average of \$8 (6,000 CFA francs) before taking the child, transporting the child to the city where the intermediary would subject the child to forced work for remuneration, which was far below the minimum wage level. In 4 out of 10 cases, the child was a foreigner transported to the country for labor. The report also indicated that the country is a transit country for regional traffickers as well, transporting children between Nigeria, Benin, Niger, Chad, Togo, the Republic of the Congo, and the Central African Republic.

In September a boat capsized off the coast of Cameroon carrying an estimated 140 suspected child slaves en route to Gabon. Nine children drowned and the others were taken to the town of Edea, near Douala, where various African consulates reportedly were working on their repatriation. The country also played a small role in a high-profile case in April, when the MV Etireno, a boat carrying an undetermined number of suspected child slaves to Gabon, was denied permission to dock at the Douala seaport but was allowed to return to Benin.

While there has been no study on trafficking in persons besides children, anecdotal evidence from the NCHRF indicates that there also may be some trafficking in adults, primarily women, as well.

The Government has criticized the practice of trafficking in persons, and the Ministry of Labor, Employment, and Social Insurance is responsible for fighting trafficking. However, that Ministry is underfunded severely, and there were no known cases of prosecution of traffickers or protection of victims by year's end.

The Government established an interagency committee to combat trafficking and has developed a program to find and return trafficked children. The budget for the launching of the Government's interagency action plan to fight trafficking was scheduled for a vote during the June budget session in the National Assembly; however, that chapter was omitted in the draft budget. Unless the President gives instructions to find money elsewhere, the launching of the plan will continue to be delayed.

The Government was working with local and international NGO's to provide temporary shelter and assistance to victims of trafficking.

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